

Social, Community, Home Care and Disability Services Industry Award 2010

This Fair Work Commission consolidated modern award incorporates all amendments up to and including 1 July 2026 ([PR799280](#), [PR799380](#) and [PR799535](#)).

Clause(s) affected by the most recent variation(s):

15—Minimum weekly wages for social and community services employees and crisis accommodation employees

16—Minimum weekly wages for family day care employees

17—Minimum weekly wages for home care employees

19—National Training Wage

20—Allowances

Schedule H—Supported Wage System

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[Varied by [PR995399](#), [PR508061](#), [PR532630](#), [PR544519](#), [PR546288](#), [PR557581](#), [PR573679](#), [PR609429](#), [PR610266](#), [PR701503](#), [PR718141](#), [PR713525](#), [PR740268](#), [PR737905](#), [PR747423](#), [PR748510](#), [PR750543](#), [PR763307](#), [PR774828](#), [PR778073](#), [PR779153](#)]

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Part 1—Application and Operation

1. Title

This award is the *Social, Community, Home Care and Disability Services Industry Award 2010*.

2. Commencement and transitional

[Varied by [PR542220](#)]

2.1 This award commences on 1 January 2010.

2.2 The monetary obligations imposed on employers by this award may be absorbed into overaward payments. Nothing in this award requires an employer to maintain or increase any overaward payment.

2.3 This award contains transitional arrangements which specify when particular parts of the award come into effect. Some of the transitional arrangements are in clauses in the main part of the award. There are also transitional arrangements in Schedule A. The arrangements in Schedule A deal with:

- minimum wages and piecework rates
- casual or part-time loadings
- Saturday, Sunday, public holiday, evening or other penalties
- shift allowances/penalties.

[2.4 varied by [PR542220](#) ppc 04Dec13]

2.4 Neither the making of this award nor the operation of any transitional arrangements is intended to result in a reduction in the take-home pay of employees covered by the award. On application by or on behalf of an employee who suffers a reduction in take-home pay as a result of the making of this award or the operation of any transitional arrangements, the Fair Work Commission may make any order it considers appropriate to remedy the situation.

[2.5 varied by [PR542220](#) ppc 04Dec13]

2.5 The Fair Work Commission may review the transitional arrangements in this award and make a determination varying the award.

[2.6 varied by [PR542220](#) ppc 04Dec13]

2.6 The Fair Work Commission may review the transitional arrangements:

- (a) on its own initiative; or
- (b) on application by an employer, employee, organisation or outworker entity covered by the modern award; or

- (c) on application by an organisation that is entitled to represent the industrial interests of one or more employers or employees that are covered by the modern award; or
- (d) in relation to outworker arrangements, on application by an organisation that is entitled to represent the industrial interests of one or more outworkers to whom the arrangements relate.

3. Definitions and interpretation

[Varied by [PR995399](#), [PR997772](#), [PR503704](#), [PR531544](#), [PR546089](#), [PR733862](#), [PR774828](#), [PR777334](#); [PR779588](#), [PR779153](#), [PR795724](#)]

3.1 In this award, unless the contrary intention appears:

Act means the *Fair Work Act 2009* (Cth)

[Definition of **aged carer experience** inserted by [PR779153](#) ppc 01Jan25]

aged carer experience means previous employment experience as a home care employee—aged care under this award or as a direct care employee in residential aged care.

agreement-based transitional instrument has the meaning in the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009* (Cth)

award-based transitional instrument has the meaning in the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009* (Cth)

[Definition of **casual employee** inserted by [PR733862](#) from 27Sep21; varied by [PR777334](#) from 27Aug24]

casual employee has the meaning given by section 15A of the [Act](#).

NOTE: Section 15A of the [Act](#) was amended with effect from 26 August 2024. Under clause 102(3) of Schedule 1 to the [Act](#), an existing employee who was a casual employee of an employer under section 15A as it was immediately before that date is taken to be a casual employee of the employer for the purposes of section 15A after that date.

crisis assistance and supported housing sector means the provision of crisis assistance and supported housing services

[Definition of **default fund employee** inserted by [PR546089](#) ppc 01Jan14]

default fund employee means an employee who has no chosen fund within the meaning of the *Superannuation Guarantee (Administration) Act 1992* (Cth)

[Definition of **defined benefit member** inserted by [PR546089](#) ppc 01Jan14]

defined benefit member has the meaning given by the *Superannuation Guarantee (Administration) Act 1992* (Cth)

[Definition of **disability services sector** deleted by [PR995399](#) ppc 26Mar10]

[Definition of **Division 2B State award** inserted by [PR503704](#) ppc 01Jan11]

Division 2B State award has the meaning in Schedule 3A of the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009* (Cth)

[Definition of **Division 2B State employment agreement** inserted by [PR503704](#) ppc 01Jan11]

Division 2B State employment agreement has the meaning in Schedule 3A of the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009* (Cth)

[Definition of **employee** substituted by [PR997772](#) from 01Jan10]

employee means national system employee within the meaning of the [Act](#)

[Definition of **employee organisation** inserted by [PR774828](#); substituted retrospectively by [PR795724](#) ppc 01Jul24]

employee organisation has the meaning given by section 12 of the [Act](#).

[Definition of **employer** substituted by [PR997772](#) from 01Jan10]

employer means national system employer within the meaning of the [Act](#)

[Definition of **enterprise** inserted by [PR774828](#) from 01Jul24]

enterprise has the meaning given by section 12 of the [Act](#).

enterprise award-based instrument has the meaning in the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009* (Cth)

[Definition of **exempt public sector superannuation scheme** inserted by [PR546089](#) ppc 01Jan14]

exempt public sector superannuation scheme has the meaning given by the *Superannuation Industry (Supervision) Act 1993* (Cth)

family day care scheme sector means the operation of a family day care scheme for the provision of family day care services

home care sector means the provision of personal care, domestic assistance or home maintenance to an aged person or a person with a disability in a private residence

[Definition of **MySuper product** inserted by [PR546089](#) ppc 01Jan14]

MySuper product has the meaning given by the *Superannuation Industry (Supervision) Act 1993* (Cth)

NES means the [National Employment Standards](#) as contained in [sections 59 to 131](#) of the *Fair Work Act 2009* (Cth)

on-hire means the on-hire of an employee by their employer to a client, where such employee works under the general guidance and instruction of the client or a representative of the client

[Definition of **small business employer** inserted by [PR774828](#) from 01Jul24]

small business employer has the meaning given by section 23 of the [Act](#).

[Definition of **social and community services sector** varied by [PR995399](#); [PR779588](#) from 25Sep24]

social and community services sector means the provision of social and community services including social work, recreation work, welfare work, youth work or community development work, including organisations which primarily engage in policy, advocacy or representation on behalf of organisations carrying out such work and the provision of disability services including the provision of social, community or disability services including the provision of personal care including therapeutic care and domestic and lifestyle support to a person with a disability in a community and/or residential setting including respite centre and day services

[Note inserted by [PR531544](#) ppc 21Nov12]

To avoid doubt, an employee will not be precluded from being engaged under Schedule B, instead of another schedule, merely because they provide services in a private residence or in outreach.

standard rate means the minimum wage for a Social and community services employee level 3 at pay point 3 in clause 15.3

transitional minimum wage instrument has the meaning in the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009* (Cth)

[Definition of **workplace delegate** inserted by [PR774828](#) from 01Jul24]

workplace delegate has the meaning given by section 350C(1) of the [Act](#).

- 3.2 Where this award refers to a condition of employment provided for in the [NES](#), the [NES](#) definition applies.

4. Coverage

[Varied by [PR995399](#), [PR544809](#), [PR779153](#)]

[4.1 varied by [PR995399](#), [PR779153](#) ppc 01Jan25]

4.1 This industry award covers employers throughout Australia in the:

- (a) crisis assistance and supported housing sector;
- (b) social and community services sector;
- (c) home care sector;
- (d) family day care scheme sector;

[4.1(e) deleted by [PR995399](#) ppc 26Mar10]

and their employees in the classifications listed in Schedule B to Schedule F to the exclusion of any other modern award.

4.2 The award does not cover employers and employees covered by any of the following awards:

- (a) *Aged Care Award 2010*;
- (b) *Amusement, Events and Recreation Award 2010*;
- (c) *Fitness Industry Award 2010*;
- (d) *Health Professionals and Support Services Award 2010*; or
- (e) *Nurses Award 2010*.

4.3 The award does not cover an employee excluded from award coverage by the [Act](#).

4.4 The award does not cover employees who are covered by a modern enterprise award, or an enterprise instrument (within the meaning of the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009* (Cth)), or employers in relation to those employees.

4.5 The award does not cover employees who are covered by a State reference public sector modern award, or a State reference public sector transitional award (within the meaning of the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009* (Cth)), or employers in relation to those employees.

4.6 This award covers any employer which supplies labour on an on-hire basis in the industry set out in clause 4.1 in respect of on-hire employees in classifications covered by this award, and those on-hire employees, while engaged in the performance of work for a business in that industry. This subclause operates subject to the exclusions from coverage in this award.

[4.7 substituted by [PR544809](#) ppc 01Jan14]

- 4.7** This award covers employers which provide group training services for trainees engaged in the industry and/or parts of industry set out at clause 4.1 and those trainees engaged by a group training service hosted by a company to perform work at a location where the activities described herein are being performed. This clause operates subject to the exclusions from coverage in this award.

[4.8 inserted by [PR544809](#) ppc 01Jan14]

- 4.8** Where an employer is covered by more than one award, an employee of that employer is covered by the award classification which is most appropriate to the work performed by the employee and to the environment in which the employee normally performs the work.

5. Access to the award and the National Employment Standards

The employer must ensure that copies of this award and the [NES](#) are available to all employees to whom they apply either on a noticeboard which is conveniently located at or near the workplace or through electronic means, whichever makes them more accessible.

6. The National Employment Standards and this award

The [NES](#) and this award contain the minimum conditions of employment for employees covered by this award.

7. Individual flexibility arrangements

[Varied by [PR542220](#); 7—Award flexibility renamed and substituted by [PR610266](#) ppc 01Nov18]

- 7.1** Despite anything else in this award, an employer and an individual employee may agree to vary the application of the terms of this award relating to any of the following in order to meet the genuine needs of both the employee and the employer:
- (a) arrangements for when work is performed; or
 - (b) overtime rates; or
 - (c) penalty rates; or
 - (d) allowances; or
 - (e) annual leave loading.
- 7.2** An agreement must be one that is genuinely made by the employer and the individual employee without coercion or duress.
- 7.3** An agreement may only be made after the individual employee has commenced employment with the employer.

- 7.4** An employer who wishes to initiate the making of an agreement must:
- (a)** give the employee a written proposal; and
 - (b)** if the employer is aware that the employee has, or reasonably should be aware that the employee may have, limited understanding of written English, take reasonable steps (including providing a translation in an appropriate language) to ensure that the employee understands the proposal.
- 7.5** An agreement must result in the employee being better off overall at the time the agreement is made than if the agreement had not been made.
- 7.6** An agreement must do all of the following:
- (a)** state the names of the employer and the employee; and
 - (b)** identify the award term, or award terms, the application of which is to be varied; and
 - (c)** set out how the application of the award term, or each award term, is varied; and
 - (d)** set out how the agreement results in the employee being better off overall at the time the agreement is made than if the agreement had not been made; and
 - (e)** state the date the agreement is to start.
- 7.7** An agreement must be:
- (a)** in writing; and
 - (b)** signed by the employer and the employee and, if the employee is under 18 years of age, by the employee's parent or guardian.
- 7.8** Except as provided in clause 7.7(b), an agreement must not require the approval or consent of a person other than the employer and the employee.
- 7.9** The employer must keep the agreement as a time and wages record and give a copy to the employee.
- 7.10** The employer and the employee must genuinely agree, without duress or coercion to any variation of an award provided for by an agreement.
- 7.11** An agreement may be terminated:
- (a)** at any time, by written agreement between the employer and the employee; or

- (b) by the employer or employee giving 13 weeks' written notice to the other party (reduced to 4 weeks if the agreement was entered into before the first full pay period starting on or after 4 December 2013).

Note: If an employer and employee agree to an arrangement that purports to be an individual flexibility arrangement under this award term and the arrangement does not meet a requirement set out in s.144 then the employee or the employer may terminate the arrangement by giving written notice of not more than 28 days (see s.145 of the [Act](#)).

- 7.12 An agreement terminated as mentioned in clause 7.11(b) ceases to have effect at the end of the period of notice required under that clause.
- 7.13 The right to make an agreement under clause 7 is additional to, and does not affect, any other term of this award that provides for an agreement between an employer and an individual employee.

Part 2—Workplace Delegates, Consultation and Dispute Resolution

[Part 2—Consultation and Dispute Resolution renamed by [PR774828](#) from 01Jul24]

7A. Workplace delegates' rights

[7A inserted by [PR774828](#); substituted retrospectively by [PR795724](#) ppc 01Jul24]

- 7A.1 Clause 7A provides for the exercise of the rights of workplace delegates set out in section 350C of the [Act](#).

NOTE: Under section 350C(4) of the [Act](#), the employer is taken to have afforded a workplace delegate the rights mentioned in section 350C(3) if the employer has complied with clause 7A.

- 7A.2 In clause 7A:

- (a) **employer** means the employer of the workplace delegate;
- (b) **delegate's organisation** means the employee organisation in accordance with the rules of which the workplace delegate was appointed or elected;
- (c) **eligible workers** means members and persons eligible to be members of the workplace delegate's organisation who work in a particular enterprise.

- 7A.3 Before exercising entitlements under clause 7A, a workplace delegate must give the employer written notice of their appointment or election as a workplace delegate. If requested, the workplace delegate must provide the employer with evidence that would satisfy a reasonable person of their appointment or election.

7A.4 An employee who ceases to be a workplace delegate must give written notice to the employer within 14 days.

7A.5 Right of representation

A workplace delegate may represent the industrial interests of eligible workers who wish to be represented by the workplace delegate in matters including:

- (a) consultation about major workplace change;
- (b) consultation about changes to rosters or hours of work;
- (c) resolution of disputes;
- (d) disciplinary processes;
- (e) enterprise bargaining where the workplace delegate has been appointed as a bargaining representative under section 176 of the [Act](#) or is assisting the delegate's organisation with enterprise bargaining; and
- (f) any process or procedure within an award, enterprise agreement or workplace policy under which eligible workers are entitled to be represented and which concerns their industrial interests.

7A.6 Entitlement to reasonable communication

- (a) A workplace delegate may communicate with eligible workers in relation to their industrial interests under clause 7A.5. This includes discussing membership of the delegate's organisation and representation with eligible workers.
- (b) A workplace delegate may communicate with eligible workers during working hours or work breaks, or before or after work.

7A.7 Entitlement to reasonable access to the workplace and workplace facilities

- (a) The employer must provide a workplace delegate with access to or use of the following workplace facilities:
 - (i) a room or area to hold discussions that is fit for purpose, private and accessible by the workplace delegate and eligible workers;
 - (ii) a physical or electronic noticeboard;
 - (iii) electronic means of communication ordinarily used in the workplace by the employer to communicate with eligible workers and by eligible workers to communicate with each other, including access to Wi-Fi;
 - (iv) a lockable filing cabinet or other secure document storage area; and

- (v) office facilities and equipment including printers, scanners and photocopiers.
- (b) The employer is not required to provide access to or use of a workplace facility under clause 7A.7(a) if:
 - (i) the workplace does not have the facility;
 - (ii) due to operational requirements, it is impractical to provide access to or use of the facility at the time or in the manner it is sought; or
 - (iii) the employer does not have access to the facility at the enterprise and is unable to obtain access after taking reasonable steps.

7A.8 Entitlement to reasonable access to training

Unless the employer is a small business employer, the employer must provide a workplace delegate with access to up to 5 days of paid time during normal working hours for initial training and at least one day each subsequent year, to attend training related to representation of the industrial interests of eligible workers, subject to the following conditions:

- (a) In each year commencing 1 July, the employer is not required to provide access to paid time for training to more than one workplace delegate per 50 eligible workers.
- (b) The number of eligible workers will be determined on the day a delegate requests paid time to attend training, as the number of eligible workers who are:
 - (i) full-time or part-time employees; or
 - (ii) regular casual employees.
- (c) Payment for a day of paid time during normal working hours is payment of the amount the workplace delegate would have been paid for the hours the workplace delegate would have been rostered or required to work on that day if the delegate had not been absent from work to attend the training.
- (d) The workplace delegate must give the employer not less than 5 weeks' notice (unless the employer and delegate agree to a shorter period of notice) of the dates, subject matter, the daily start and finish times of the training, and the name of the training provider.
- (e) If requested by the employer, the workplace delegate must provide the employer with an outline of the training content.

- (f) The employer must advise the workplace delegate not less than 2 weeks from the day on which the training is scheduled to commence, whether the workplace delegate's access to paid time during normal working hours to attend the training has been approved. Such approval must not be unreasonably withheld.
- (g) The workplace delegate must, within 7 days after the day on which the training ends, provide the employer with evidence that would satisfy a reasonable person of their attendance at the training.

7A.9 Exercise of entitlements under clause 7A

- (a) A workplace delegate's entitlements under clause 7A are subject to the conditions that the workplace delegate must, when exercising those entitlements:
 - (i) comply with the reasonable policies and procedures of the employer, including reasonable codes of conduct and requirements in relation to occupational health and safety and acceptable use of ICT resources;
 - (ii) not hinder, obstruct or prevent eligible workers exercising their rights to freedom of association.
- (b) When exercising any entitlements under clause 7A, a workplace delegate must, other than in the reasonable exercise of those entitlements:
 - (i) comply with their duties and obligations as an employee; and
 - (ii) not hinder, obstruct or prevent the normal performance of work.
- (c) Clause 7A does not require the employer to provide a workplace delegate with access to electronic means of communication in a way that provides individual contact details for eligible workers.
- (d) Clause 7A does not require an eligible worker to be represented by a workplace delegate without the worker's agreement.

NOTE: Under section 350A of the [Act](#), the employer must not:

- (a) unreasonably fail or refuse to deal with a workplace delegate; or
- (b) knowingly or recklessly make a false or misleading representation to a workplace delegate; or
- (c) unreasonably hinder, obstruct or prevent the exercise of the rights of a workplace delegate under the [Act](#) or clause 7A.

8. Consultation about major workplace change

[8—Consultation regarding major workplace change renamed and substituted by [PR546288](#), 8—Consultation renamed and substituted by [PR610266](#) ppc 01Nov18]

- 8.1** If an employer makes a definite decision to make major changes in production, program, organisation, structure or technology that are likely to have significant effects on employees, the employer must:
- (a) give notice of the changes to all employees who may be affected by them and their representatives (if any); and
 - (b) discuss with affected employees and their representatives (if any):
 - (i) the introduction of the changes; and
 - (ii) their likely effect on employees; and
 - (iii) measures to avoid or reduce the adverse effects of the changes on employees; and
 - (c) commence discussions as soon as practicable after a definite decision has been made.
- 8.2** For the purposes of the discussion under clause 8.1(b), the employer must give in writing to the affected employees and their representatives (if any) all relevant information about the changes including:
- (a) their nature; and
 - (b) their expected effect on employees; and
 - (c) any other matters likely to affect employees.
- 8.3** Clause 8.2 does not require an employer to disclose any confidential information if its disclosure would be contrary to the employer's interests.
- 8.4** The employer must promptly consider any matters raised by the employees or their representatives about the changes in the course of the discussion under clause 8.1(b).
- 8.5** In clause 8:
significant effects, on employees, includes any of the following:
- (a) termination of employment; or
 - (b) major changes in the composition, operation or size of the employer's workforce or in the skills required; or
 - (c) loss of, or reduction in, job or promotion opportunities; or
 - (d) loss of, or reduction in, job tenure; or

- (e) alteration of hours of work; or
- (f) the need for employees to be retrained or transferred to other work or locations; or
- (g) job restructuring.

8.6 Where this award makes provision for alteration of any of the matters defined at clause 8.5, such alteration is taken not to have significant effect.

8A. Consultation about changes to rosters or hours of work

[8A inserted by [PR610266](#) ppc 01Nov18]

8A.1 Clause 8A applies if an employer proposes to change the regular roster or ordinary hours of work of an employee, other than an employee whose working hours are irregular, sporadic or unpredictable.

8A.2 The employer must consult with any employees affected by the proposed change and their representatives (if any).

8A.3 For the purpose of the consultation, the employer must:

- (a) provide to the employees and representatives mentioned in clause 8A.2 information about the proposed change (for example, information about the nature of the change and when it is to begin); and
- (b) invite the employees to give their views about the impact of the proposed change on them (including any impact on their family or caring responsibilities) and also invite their representative (if any) to give their views about that impact.

8A.4 The employer must consider any views given under clause 8A.3(b).

8A.5 Clause 8A is to be read in conjunction with any other provisions of this award concerning the scheduling of work or the giving of notice.

9. Dispute resolution

[Varied by [PR542220](#); substituted by [PR610266](#) ppc 01Nov18; varied by [PR763307](#), [PR777334](#), [PR778073](#)]

9.1 Clause 9 sets out the procedures to be followed if a dispute arises about a matter under this award or in relation to the [NES](#).

9.2 The parties to the dispute must first try to resolve the dispute at the workplace through discussion between the employee or employees concerned and the relevant supervisor.

9.3 If the dispute is not resolved through discussion as mentioned in clause 9.2, the parties to the dispute must then try to resolve it in a timely manner at the workplace through

discussion between the employee or employees concerned and more senior levels of management, as appropriate.

- 9.4** If the dispute is unable to be resolved at the workplace and all appropriate steps have been taken under clauses 9.2 and 9.3, a party to the dispute may refer it to the Fair Work Commission.
- 9.5** The parties may agree on the process to be followed by the Fair Work Commission in dealing with the dispute, including mediation, conciliation and consent arbitration.
- 9.6** If the dispute remains unresolved, the Fair Work Commission may use any method of dispute resolution that it is permitted by the [Act](#) to use and that it considers appropriate for resolving the dispute.
- 9.7** A party to the dispute may appoint a person, organisation or association to support and/or represent them in any discussion or process under clause 9.
- 9.8** While procedures are being followed under clause 9 in relation to a dispute:
- (a)** work must continue in accordance with this award and the [Act](#); and
 - (b)** an employee must not unreasonably fail to comply with any direction given by the employer about performing work, whether at the same or another workplace, that is safe and appropriate for the employee to perform.
- 9.9** Clause 9.8 is subject to any applicable work health and safety legislation.

[Note 1 and Note 2 inserted by [PR763307](#); deleted by [PR778073](#) from 26Aug24]

[Note inserted by [PR778073](#) from 26Aug24; varied by [PR777334](#) from 27Aug24]

NOTE: In addition to clause 9, the [Act](#) contains dispute resolution procedures as follows:

For a dispute about rights under the Act to	Section
Request flexible working arrangements	65B
Change casual employment status	66M
Request an extension to unpaid parental leave	76B
Exercise an employee's right to disconnect	333N

Part 3—Types of Employment and Termination of Employment

10. Types of employment

[Varied by [PR995399](#), [PR539625](#), [PR598488](#), [PR700613](#), [PR733862](#), [PR737905](#), [PR750543](#), [PR777334](#)]

10.1 Employment categories

- (a) Employees under this award will be employed in one of the following categories:
 - (i) full-time employment;
 - (ii) part-time employment; or
 - (iii) casual employment.
- (b) At the time of engagement, an employer will inform each employee the basis of their employment. An employer may direct an employee to carry out such duties as are within the limits of the employee's skill, competence and training, consistent with the respective classification.

10.2 Full-time employment

A full-time employee is one who is engaged to work 38 hours per week or an average of 38 hours per week.

10.3 Part-time employment

[10.3 substituted by [PR737905](#) ppc 01Jul22]

- (a) A part-time employee is one who is engaged to work less than 38 hours per week or an average of less than 38 hours per week and who has reasonably predictable hours of work.
- (b) The terms of this award will apply to part-time employees on a pro-rata basis on the basis that the ordinary weekly hours of work for full-time employees are 38.
- (c) Before commencing employment, the employer and employee will agree in writing on:
 - (i) a regular pattern of work including the number of ordinary hours to be worked each week (**the guaranteed hours**), and
 - (ii) the days of the week the employee will work and the starting and finishing times each day.

- (d) The agreed regular pattern of work does not necessarily have to provide for the same guaranteed hours each week.
- (e) The agreement made pursuant to clause 10.3(c) may subsequently be varied by agreement between the employer and employee in writing. Any such agreement may be ongoing or for a specified period of time.
- (f) An employer must not require a part-time employee to work additional hours in excess of their guaranteed hours. However, an employee may agree to work hours that are additional to their guaranteed hours.
- (g) **Review of guaranteed hours**
 - (i) Where a part-time employee has regularly worked more than their guaranteed hours for at least 12 months, the employee may request in writing that the employer vary the agreement made under clause 10.3(c), or as subsequently varied under clause 10.3(e), to increase their guaranteed hours.
 - (ii) The employer must respond in writing to the employee's request within 21 days.
 - (iii) The employer may refuse the request only on reasonable business grounds.
 - (iv) Before refusing a request made under clause 10.3(g)(i), the employer must discuss the request with the employee and genuinely try to reach agreement on an increase to the employee's guaranteed hours that will give the employee more predictable hours of work and reasonably accommodate the employee's circumstances.
 - (v) If the employer and employee agree to vary the agreement made under clause 10.3(c), the employer's written response must record the agreed variation.
 - (vi) If the employer and employee do not reach agreement, the employer's written response must set out the grounds on which the employer has refused the employee's request.
 - (vii) Clause 10.3(g) is intended to operate in conjunction with clause 10.3(e) and does not prevent an employee and employer from agreeing to vary the agreement made under clause 10.3(c) in other circumstances.
 - (viii) An employee cannot make a request for a review of their guaranteed hours when:

- (A) The employee has refused a previous offer to increase their guaranteed hours in the last 6 months; or
- (B) The employer refused a request from the employee to increase their guaranteed hours based on reasonable business grounds in the last 6 months.

10.4 Casual employment

[10.4(a) deleted by [PR733862](#) from 27Sep21]

[10.4(b) renumbered as 10.4(a) by [PR733862](#) from 27Sep21; 10.4(a) renumbered as 10.4 by [PR737905](#) ppc 01Jul22; varied by [PR750543](#) ppc 15Mar23]

A casual employee will be paid per hour calculated at the rate of 1/38th of the weekly rate appropriate to the employee's classification. In addition, a loading of 25% of that rate will be paid.

[Note inserted by [PR750543](#) ppc 15Mar23]

NOTE: The casual loading is payable instead of entitlements from which casuals are excluded by the terms of this award and the [NES](#). See Part 2-2 of the [Act](#).

[10.4(b) deleted by [PR737905](#) ppc 01Jul22]

10.5 Minimum payments for part-time and casual employees

[New 10.5 inserted by [PR737905](#) ppc 01Jul22]

Part-time and casual employees will be paid for the following minimum number of hours, at the appropriate rate, for each shift or period of work in a broken shift:

- (a) social and community services employees (except when undertaking disability services work)—3 hours;
- (b) all other employees—2 hours.

10.5A Transitional arrangements applying to minimum payments for part-time employees

[10.5A inserted by [PR737905](#) ppc 01Feb22]

Clause 10.5A operates from 1 February 2022 until 1 October 2022.

NOTE: From 1 July 2022, this award will include a requirement for part-time employees to be paid for the following minimum number of hours, at the appropriate rate, for each shift or period of work in a broken shift: social and community services employees (except when undertaking disability services work)—3 hours; all other employees—2 hours (the **minimum payment**

requirements). This clause provides transitional arrangements for the minimum payment requirements.

- (a) Clause 10.5A applies in relation to agreements made under clause 10.3(c) before 1 February 2022, where the employee's agreed regular pattern of work includes shifts or periods of work in broken shifts of less than:
 - (i) 3 hours for social and community services employees (except when undertaking disability services work);
 - (ii) 2 hours for all other employees.
- (b) The employer must discuss the relevant minimum payment requirements with the employee and genuinely try to reach agreement on a variation to the agreement made under clause 10.3(c) that will make each of the employee's shifts or periods of work in broken shifts consistent with the hours specified in clause 10.5A(a)(i) or (ii) and will reasonably accommodate the employee's circumstances.
- (c) Notwithstanding any prior agreement between the employer and the employee and despite clause 10.3(e), if the employer has genuinely tried to reach an agreement with the employee under clause 10.5A(b) but an agreement is not reached (including because the employee refuses to confer), the employer may vary the agreement made under clause 10.3(c) to provide for shifts or periods of work in broken shifts that are consistent with the hours specified in clause 10.5A(a)(i) or (ii), by providing 42 days' notice to the employee in writing.
- (d) A variation by the employer under clause 10.5A(c) varies the agreement between the employer and employee made under clause 10.3(c).
- (e) A variation made under clause 10.5A(c) must not come into operation before 1 July 2022.
- (f) Clause 10.5A(c) is intended to operate in conjunction with clause 10.3(e) and does not prevent an employee and employer from agreeing to vary the agreement made under clause 10.3(c) in other circumstances.

10.6 Changes to casual employment status

[10.5 inserted by [PR700613](#); renamed and substituted by [PR733862](#); 10.5 renumbered as 10.6 by [PR737905](#) ppc 01Jul22; renamed and substituted by [PR777334](#) from 27Aug24]

A pathway for employees to change from casual employment to full-time or part-time employment is provided for in the [NES](#). See sections 66A to 66MA of the [Act](#).

NOTE: Disputes about changes to casual employment status may be dealt with under sections 66M and 66MA of the [Act](#) and/or under clause 9—Dispute resolution.

11. Termination of employment

[12 substituted by [PR610266](#) ppc 01Nov18]

Note: The [NES](#) sets out requirements for notice of termination by an employer. See ss.117 and 123 of the [Act](#).

11.1 Notice of termination by an employee

- (a) This clause applies to all employees except those identified in ss.123(1) and 123(3) of the [Act](#).
- (b) An employee must give the employer notice of termination in accordance with **Table 1—Period of notice** of at least the period specified in column 2 according to the period of continuous service of the employee specified in column 1.

Table 1—Period of notice

Column 1 Employee's period of continuous service with the employer at the end of the day the notice is given	Column 2 Period of notice
Not more than 1 year	1 week
More than 1 year but not more than 3 years	2 weeks
More than 3 years but not more than 5 years	3 weeks
More than 5 years	4 weeks

Note: The notice of termination required to be given by an employee is the same as that required of an employer except that the employee does not have to give additional notice based on the age of the employee.

- (c) In paragraph (b) **continuous service** has the same meaning as in s.117 of the [Act](#).
- (d) If an employee who is at least 18 years old does not give the period of notice required under paragraph (b), then the employer may deduct from wages due

to the employee under this award an amount that is no more than one week's wages for the employee.

- (e) If the employer has agreed to a shorter period of notice than that required under paragraph (b), then no deduction can be made under paragraph (d).
- (f) Any deduction made under paragraph (d) must not be unreasonable in the circumstances.

11.2 Job search entitlement

Where an employer has given notice of termination to an employee, the employee must be allowed time off without loss of pay of up to one day for the purpose of seeking other employment.

- 11.3** The time off under clause 11.2 is to be taken at times that are convenient to the employee after consultation with the employer.

12. Redundancy

[Varied by [PR503704](#), [PR539625](#), [PR539803](#), [PR561478](#); substituted by [PR701683](#) ppc 03May19]

NOTE: Redundancy pay is provided for in the [NES](#). See sections 119–123 of the [Act](#).

12.1 Transfer to lower paid duties on redundancy

- (a) Clause 12.1 applies if, because of redundancy, an employee is transferred to new duties to which a lower ordinary rate of pay applies.
- (b) The employer may:
 - (i) give the employee notice of the transfer of at least the same length as the employee would be entitled to under section 117 of the [Act](#) as if it were a notice of termination given by the employer; or
 - (ii) transfer the employee to the new duties without giving notice of transfer or before the expiry of a notice of transfer, provided that the employer pays the employee as set out in paragraph (c).
- (c) If the employer acts as mentioned in paragraph (b)(ii), the employee is entitled to a payment of an amount equal to the difference between the ordinary rate of pay of the employee (inclusive of all-purpose allowances, shift rates and penalty rates applicable to ordinary hours) for the hours of work the employee would have worked in the first role, and the ordinary rate of pay (also inclusive of all-purpose allowances, shift rates and penalty rates applicable to ordinary hours) of the employee in the second role for the period for which notice was not given.

12.2 Employee leaving during redundancy notice period

- (a) An employee given notice of termination in circumstances of redundancy may terminate their employment during the minimum period of notice prescribed by section 117(3) of the [Act](#).
- (b) The employee is entitled to receive the benefits and payments they would have received under clause 12 or under sections 119–123 of the [Act](#) had they remained in employment until the expiry of the notice.
- (c) However, the employee is not entitled to be paid for any part of the period of notice remaining after the employee ceased to be employed.

12.3 Job search entitlement

- (a) Where an employer has given notice of termination to an employee in circumstances of redundancy, the employee must be allowed time off without loss of pay of up to one day each week of the minimum period of notice prescribed by section 117(3) of the [Act](#) for the purpose of seeking other employment.
- (b) If an employee is allowed time off without loss of pay of more than one day under paragraph (a), the employee must, at the request of the employer, produce proof of attendance at an interview.
- (c) A statutory declaration is sufficient for the purpose of paragraph (b).
- (d) An employee who fails to produce proof when required under paragraph (b) is not entitled to be paid for the time off.
- (e) This entitlement applies instead of clauses 11.2 and 11.3.

Part 4—Minimum Wages and Related Matters

13. Classifications

[Varied by [PR995399](#), [PR779153](#)]

[13.1 varied by [PR995399](#), [PR779153](#) ppc 01Jan25]

- 13.1** The definitions for the classification levels in clauses 15 to 17 are contained in Schedule B to Schedule F.
- 13.2** Employers must advise their employees in writing of their classification upon commencement and of any subsequent changes to their classification.

13.3 Progression

- (a) At the end of each 12 months' continuous employment, an employee will be eligible for progression from one pay point to the next within a level if the employee has demonstrated competency and satisfactory performance over a minimum period of 12 months at each level within the level and:
- (i) the employee has acquired and satisfactorily used new or enhanced skills within the ambit of the classification, if required by the employer; or
 - (ii) where an employer has adopted a staff development and performance appraisal scheme and has determined that the employee has demonstrated satisfactory performance for the prior 12 months' employment.
- (b) Movement to a higher classification will only occur by way of promotion or re-classification.

14. Salary Packaging

Where agreed between the employer and a full-time or part-time employee, an employer may introduce remuneration packaging in respect of salary, as provided for in clauses 15 to 17. The terms and conditions of such a package must not, when viewed objectively, be less favourable than the entitlements otherwise available under this award.

15. Minimum weekly wages for social and community services employees and crisis accommodation employees

[Varied by [PR997934](#), [PR503704](#), [PR509131](#), [PR526106](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR737905](#), [PR740786](#); corrected by [PR743157](#); varied by [PR743155](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#)]

[Note inserted by [PR503704](#) ppc 01Jan11; administratively amended in accordance with decision [\[2012\] FWAFB 5184](#); Note 1 and Note 2 deleted by [PR737905](#) ppc 01Jul22]

15.1 Social and community services employee level 1

[15.1 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1046.90

Pay point 2	1080.60
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Pay point 3	1119.10
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15.2 Social and community services employee level 2

[15.2 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1119.10
Pay point 2	1154.30
Pay point 3	1189.40
Pay point 4	1221.10

15.3 Social and community services employee level 3 Crisis accommodation employee level 1

[15.3 varied by [PR997934](#), [PR509131](#), [PR526106](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1 (associate diploma/advanced certificate)	1221.10
Pay point 2	1256.30
Pay point 3 (3 year degree)	1283.10
Pay point 4 (4 year degree)	1309.50

15.4 Social and community services employee level 4 Crisis accommodation employee level 2

[15.4 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1344.50
Pay point 2	1379.60
Pay point 3	1415.10
Pay point 4	1446.60

15.5 Social and community services employee level 5 Crisis accommodation employee level 3

[15.5 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1481.90
Pay point 2	1513.80
Pay point 3	1549.00

15.6 Social and community services employee level 6

Crisis accommodation employee level 4

[15.6 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1584.30
Pay point 2	1619.30
Pay point 3	1654.40

15.7 Social and community services employee level 7

[15.7 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1689.40
Pay point 2	1724.90
Pay point 3	1760.00

15.8 Social and community services employee level 8

[15.8 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1795.00
Pay point 2	1830.30

Pay point 3

1865.70

[New Note 1 inserted by [PR737905](#) ppc 01Jul22]

NOTE 1: A **transitional pay equity order** taken to have been made pursuant to item 30A of Schedule 3A to the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009* (Cth) has effect in accordance with that item. Transitional pay equity orders operate in Queensland as provided for in items 30A (6) and (7).

[New Note 2 inserted by [PR737905](#) ppc 01Jul22; varied by [PR740786](#) ppc 01Jul22; corrected by [PR743157](#); varied by [PR743155](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

NOTE 2: An **equal remuneration order** [PR525485] also applies to employees in the classifications in Schedule B—Classification Definitions—Social and Community Services Employees and Schedule C—Classification Definitions—Crisis Accommodation Employees of this award. The final rates of pay resulting from the equal remuneration order are set out below. The ‘current hourly wage’ and ‘current weekly wage’ in the tables below form employees’ ordinary rates of pay for all purposes:

Equal remuneration rates for applicable Social and Community Services employees

	Clause	Minimum weekly wage	Final Rate ERO Percentage	Current weekly wage	Current hourly wage
Classification		\$	%	\$	\$
Social and community services employee level 2	15.2				
Pay point 1		1119.10	123	1376.49	36.22
Pay point 2		1154.30	123	1419.79	37.36
Pay point 3		1189.40	123	1462.96	38.50
Pay point 4		1221.10	123	1501.95	39.53
Social and community services employee level 3	15.3				

Social, Community, Home Care and Disability Services Industry Award 2010

	Clause	Minimum weekly wage	Final Rate ERO Percentage	Current weekly wage	Current hourly wage
Pay point 1 (associate diploma/advanced certificate)		1221.10	126	1538.59	40.49
Pay point 2		1256.30	126	1582.94	41.66
Pay point 3 (3 year degree)		1283.10	126	1616.71	42.55
Pay point 4 (4 year degree)		1309.50	126	1649.97	43.42
Social and community services employee level 4	15.4				
Pay point 1		1344.50	132	1774.74	46.70
Pay point 2		1379.60	132	1821.07	47.92
Pay point 3		1415.10	132	1867.93	49.16
Pay point 4		1446.60	132	1909.51	50.25
Social and community services employee level 5	15.5				
Pay point 1		1481.90	137	2030.20	53.43
Pay point 2		1513.80	137	2073.91	54.58
Pay point 3		1549.00	137	2122.13	55.85
Social and community services employee level 6	15.6				
Pay point 1		1584.30	140	2218.02	58.37
Pay point 2		1619.30	140	2267.02	59.66

Social, Community, Home Care and Disability Services Industry Award 2010

	Clause	Minimum weekly wage	Final Rate ERO Percentage	Current weekly wage	Current hourly wage
Pay point 3		1654.40	140	2316.16	60.95
Social and community services employee level 7	15.7				
Pay point 1		1689.40	142	2398.95	63.13
Pay point 2		1724.90	142	2449.36	64.46
Pay point 3		1760.00	142	2499.20	65.77
Social and community services employee level 8	15.8				
Pay point 1		1795.00	145	2602.75	68.49
Pay point 2		1830.30	145	2653.94	69.84
Pay point 3		1865.70	145	2705.27	71.19

Equal remuneration rates for Crisis Accommodation employees

	Clause	Minimum weekly wage	Final Rate ERO Percentage	Current weekly wage	Current hourly wage
Classification		\$	%	\$	\$
Crisis accommodation employee Level 1	15.3				
Pay point 1 (associate diploma/advanced certificate)		1221.10	126	1538.59	40.49
Pay point 2		1256.30	126	1582.94	41.66

Social, Community, Home Care and Disability Services Industry Award 2010

	Clause	Minimum weekly wage	Final Rate ERO Percentage	Current weekly wage	Current hourly wage
Classification		\$	%	\$	\$
Pay point 3 (3 year degree)		1283.10	126	1616.71	42.55
Pay point 4 (4 year degree)		1309.50	126	1649.97	43.42
Crisis accommodation employee level 2	15.4				
Pay point 1		1344.50	132	1774.74	46.70
Pay point 2		1379.60	132	1821.07	47.92
Pay point 3		1415.10	132	1867.93	49.16
Pay point 4		1446.60	132	1909.51	50.25
Crisis accommodation employee level 3	15.5				
Pay point 1		1481.90	137	2030.20	53.43
Pay point 2		1513.80	137	2073.91	54.58
Pay point 3		1549.00	137	2122.13	55.85
Crisis accommodation employee level 4	15.6				
Pay point 1		1584.30	140	2218.02	58.37
Pay point 2		1619.30	140	2267.02	59.66
Pay point 3		1654.40	140	2316.16	60.95

16. Minimum weekly wages for family day care employees

[Varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#)]

16.1 Family day care employee level 1

[16.1 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1048.10
Pay point 2	1081.80
Pay point 3	1121.00
Pay point 4	1158.60

16.2 Family day care employee level 2

[16.2 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1191.60
Pay point 2	1230.50
Pay point 3	1269.50
Pay point 4	1299.70

16.3 Family day care employee level 3

[16.3 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1332.70
Pay point 2	1374.20
Pay point 3	1416.50
Pay point 4	1455.50

16.4 Family day care employee level 4

[16.4 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1497.60
Pay point 2	1513.40
Pay point 3	1548.80
Pay point 4	1574.40

16.5 Family day care employee level 5

[16.5 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week \$
Pay point 1	1687.10
Pay point 2	1733.70
Pay point 3	1780.90
Pay point 4	1827.60

[17—Minimum weekly wages for disability services employees deleted by [PR995399](#) ppc 26Mar10]

17. Minimum weekly wages for home care employees

[18 renumbered as 17 by [PR995399](#); varied by [PR995399](#), [PR997934](#), [PR503704](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#), [PR751296](#), [PR762209](#), [PR773989](#), [PR779153](#), [PR786639](#), [PR791117](#), [PR799380](#)]

[Note inserted by [PR503704](#) ppc 01Jan11]

NOTE: A transitional pay equity order taken to have been made pursuant to item 30A of Schedule 3A to the *Fair Work (Transitional Provisions and Consequential Amendments) Act 2009* (Cth) has effect in accordance with that item. Transitional pay equity orders operate in Queensland as provided for in items 30A (6) and (7).

17.1 Home care employees—disability care

[17.1 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#); renamed and substituted by [PR751296](#) ppc 30Jun23]

The following minimum wages apply to home care employees providing services to a person with a disability.

(a) Home care employee level 1—disability care

[17.1(a) varied by [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week
	\$
Pay point 1	1036.80

(b) Home care employee level 2—disability care

[17.1(b) varied by [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week
	\$
Pay point 1	1096.60
Pay point 2	1104.10

(c) Home care employee level 3—disability care

[17.1(c) varied by [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week
	\$
Pay point 1 (certificate 3)	1119.10
Pay point 2	1153.70

(d) Home care employee level 4—disability care

[17.1(d) varied by [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week
	\$
Pay point 1	1221.00
Pay point 2	1245.40

(e) Home care employee level 5—disability care

[17.1(e) varied by [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

	Per week
	\$
Pay point 1 (degree or diploma)	1309.20
Pay point 2	1360.80

17.2 Home care employees—aged care

[17.2 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#); renamed and substituted by [PR751296](#) ppc 30Jun23; varied by [PR773989](#); substituted by [PR779153](#) ppc 01Jan25; varied by [PR786639](#), [PR791117](#), [PR799380](#) ppc 01Jul26]

The following minimum wages apply to home care employees providing services to an aged person.

Classification	Per week
	\$
Home care employee level 1—aged care	1239.00
Home care employee level 2—aged care	1307.80
Home care employee level 3—aged care	1376.70
Home care employee level 4—aged care	1431.70
Home care employee level 5—aged care	1486.80
Home care employee level 6—aged care	1541.90

NOTE: See Schedule G—Classification Translation Arrangements for the minimum rate of pay applicable to Home care employees who provide services to an aged person who were covered by this award on or before 31 December 2024 and employees covered by the *Nurses Award 2020* on 31 December 2024 who became covered by this award as a result of [PR779152](#).

[17.3 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#); deleted by [PR751296](#) ppc 30Jun23]

[17.4 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#); deleted by [PR751296](#) ppc 30Jun23]

[17.5 varied by [PR997934](#), [PR509131](#), [PR522962](#), [PR536765](#), [PR551688](#), [PR566780](#), [PR579887](#), [PR592201](#), [PR606426](#), [PR707517](#), [PR718918](#), [PR729360](#), [PR740786](#); deleted by [PR751296](#) ppc 30Jun23]

18. Supported wage system

[19 renumbered as 18 by [PR995399](#) ppc 26Mar10]

See Schedule H.

19. National Training Wage

[New 19 inserted by [PR508061](#) from 01Jan10; substituted by [PR593874](#) ppc 01Jul17; varied by [PR606426](#), [PR707517](#), [PR720159](#), [PR718918](#), [PR723827](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#)]

[19.1 varied by [PR720159](#) ppc 18Jun20]

19.1 Schedule E to the *Miscellaneous Award 2020* sets out minimum wage rates and conditions for employees undertaking traineeships.

[19.2 varied by [PR606426](#), [PR707517](#), [PR720159](#) ppc 18Jun20, [PR723827](#), [PR729360](#), [PR740786](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

19.2 This award incorporates the terms of Schedule E to the *Miscellaneous Award 2020* as at 1 July 2026. Provided that any reference to “this award” in Schedule E to the *Miscellaneous Award 2020* is to be read as referring to the *Social, Community, Home Care and Disability Services Industry Award 2010* and not the *Miscellaneous Award 2020*.

[19.3 inserted by [PR718918](#); deleted by [PR723827](#) ppc 01Nov20]

20. Allowances

To view the current monetary amounts of work-related allowances refer to the [Allowances Sheet](#).

[20 renumbered as 19 by [PR995399](#); varied by [PR998179](#), [PR500495](#); [PR500495](#) set aside by [\[2010\] FWA FB 9880](#); varied by [PR505347](#); 19 renumbered as 20 by [PR508061](#) from 01Jan10; varied by [PR509252](#), [PR523082](#), [PR531544](#), [PR536885](#), [PR551808](#), [PR566909](#), [PR579607](#), [PR592355](#), [PR606578](#), [PR704211](#), [PR707745](#), [PR719070](#), [PR729543](#), [PR737905](#), [PR740786](#), [PR740949](#); corrected by [PR743157](#); varied by [PR743155](#), [PR762209](#), [PR762377](#), [PR773989](#), [PR774158](#), [PR786639](#), [PR786807](#), [PR799380](#), [PR799535](#)]

20.1 Adjustment of expense related allowances

- (a) At the time of any adjustment to the [standard rate](#), each expense related allowance will be increased by the relevant adjustment factor. The relevant adjustment factor for this purpose is the percentage movement in the applicable index figure most recently published by the Australian Bureau of Statistics since the allowance was last adjusted.
- (b) The applicable index figure is the index figure published by the Australian Bureau of Statistics for the Eight Capitals Consumer Price Index (Cat No. 6401.0), as follows:

Allowance	Applicable Consumer Price Index figure
Board and lodging	Weighted average eight capital cities—CPI
Clothing, equipment and tools allowance	Clothing and footwear group
Meal allowances	Take away and fast foods sub-group
Vehicle/travel allowance	Private motoring sub-group

20.2 Clothing and equipment

- (a) Employees required by the employer to wear uniforms will be supplied with an adequate number of uniforms appropriate to the occupation free of cost to employees. Such items are to remain the property of the employer and be laundered and maintained by the employer free of cost to the employee.

[20.3(b) varied by [PR799535](#) ppc 01Jul26]

- (b) Instead of the provision of such uniforms, the employer may, by agreement with the employee, pay such employee a uniform allowance at the rate of \$1.26 per shift or part thereof on duty or \$6.41 per week, whichever is the lesser amount. Where such employee's uniforms are not laundered by or at the expense of the employer, the employee will be paid a laundry allowance of \$0.33 per shift or part thereof on duty or \$1.53 per week, whichever is the lesser amount.

[20.2(c) substituted by [PR531544](#) ppc 21Nov12]

- (c) The uniform allowance, but not the laundry allowance, will be paid during all absences on paid leave, except absences on long service leave and absence on personal/carer's leave beyond 21 days. Where, prior to the taking of leave, an

employee was paid a uniform allowance other than at the weekly rate, the rate to be paid during absence on leave will be the average of the allowance paid during the four weeks immediately preceding the taking of leave.

- (d) Where an employer requires an employee to wear rubber gloves, special clothing or where safety equipment is required for the work performed by an employee, the employer must reimburse the employee for the cost of purchasing such special clothing or safety equipment, except where such clothing or equipment is provided by the employer.

20.3 Laundering of clothing other than uniforms

[New 20.3 inserted by [PR737905](#) ppc 01Jul22, varied by [PR799535](#) ppc 01Jul26]

If during any day or shift, the clothing of an employee (other than a uniform) is soiled in the course of the performance of their duties, the employee will be paid a laundry allowance of \$0.33 cents per shift provided that:

- (a) As soon as reasonably practicable the employee provides notice of the soiling and, if requested, evidence that would satisfy a reasonable person of the soiling and/or how it occurred; and
- (b) At the time the clothing was soiled the employee had complied with any reasonable requirement of the employer in relation to the wearing of personal protective equipment either provided or paid for by the employer in accordance with clause 20.2(d).

20.4 Repair and replacement of clothing other than uniforms

[New 20.4 inserted by [PR737905](#) ppc 01Jul22]

- (a) If the clothing of an employee is soiled or damaged (excluding normal wear and tear) in the course of the performance of their duties, to the extent that its repair or replacement is necessary, the employer must reimburse the employee for the reasonable cost incurred in repairing or replacing the clothing with a substitute item, provided that:
 - (i) As soon as reasonably practicable the employee provides notice of the soiling or damage and, if requested, evidence that would satisfy a reasonable person of the soiling or damage, how it occurred, and the reasonable repair or replacement costs;
 - (ii) At the time the clothing was soiled or damaged the employee had complied with any reasonable requirement of the employer in relation to the wearing of personal protective equipment either provided or paid for by the employer in accordance with clause 20.2(d); and

- (iii) The damage or soiling of an employee's clothes is not caused by the negligence of the employee.
- (b) This clause will not apply where an employee is permitted or required to wear a uniform supplied by the employer or is otherwise entitled to any payment under clause 20.2.

20.5 Meal allowances

[20.3 renumbered as 20.5 by [PR737905](#) ppc 01Jul22]

[20.5(a) varied by [PR998179](#), [PR509252](#), [PR523082](#), [PR536885](#), [PR551808](#), [PR566909](#), [PR592355](#), [PR606578](#), [PR704211](#), [PR707745](#), [PR719070](#), [PR729543](#), [PR740949](#), [PR762377](#), [PR774158](#), [PR786807](#), [PR799535](#) ppc 01Jul26]

- (a) An employee will be supplied with an adequate meal where an employer has adequate cooking and dining facilities or be paid a meal allowance of \$17.30 in addition to any overtime payment as follows:
 - (i) when required to work more than one hour after the usual finishing hour of work or, in the case of shiftworkers, when the overtime work on any shift exceeds one hour; and
 - (ii) provided that where such overtime work exceeds four hours a further meal allowance of \$17.30 will be paid.
- (b) Clause 20.5(a) will not apply when an employee could reasonably return home for a meal within the meal break.
- (c) On request, meal allowance will be paid on the same day as overtime is worked.

20.6 First aid allowance

[20.4 renumbered as 20.6 by [PR737905](#) ppc 01Jul22]

[20.4 varied by [PR500495](#) set aside by [\[2010\] FWAFB 9880](#); 20.4 substituted by [PR505347](#) ppc 01Jan10]

(a) First aid allowance—full-time employees

A weekly first aid allowance of 1.67% of the [standard rate](#) per week will be paid to a full-time employee where:

- (i) an employee is required by the employer to hold a current first aid certificate; and
- (ii) an employee, other than a home care employee, is required by their employer to perform first aid at their workplace; or

- (iii) a home care employee is required by the employer to be, in a given week, responsible for the provision of first aid to employees employed by the employer.

(b) First aid allowance—casual and part-time employees

The first aid allowance in 20.6(a) will apply to eligible part time and casual employees on a pro rata basis on the basis that the ordinary weekly hours of work for full-time employees are 38.

20.7 Travelling, transport and fares

[20.5 renumbered as 20.7 by [PR737905](#) ppc 01Jul22]

[20.7(a) varied by [PR523082](#), [PR536885](#), [PR551808](#), [PR719070](#), [PR740949](#), [PR762377](#), [PR774158](#), [PR799535](#) ppc 01Jul26]

- (a) Where an employee is required and authorised by their employer to use their motor vehicle in the course of their duties, the employee is entitled to be reimbursed at the rate of \$1.01 per kilometre.
- (b) When an employee is involved in travelling on duty, if the employer cannot provide the appropriate transport, all reasonably incurred expenses in respect to fares, meals and accommodation will be met by the employer on production of receipted account(s) or other evidence acceptable to the employer.
- (c) Provided that the employee will not be entitled to reimbursement for expenses referred to in clause 20.7(b) which exceed the mode of transport, meals or the standard of accommodation agreed with the employer for these purposes.
- (d) An employee required to stay away from home overnight will be reimbursed the cost of reasonable accommodation and meals. Reasonable proof of costs so incurred is to be provided to the employer by the employee.

20.8 Telephone allowance

[20.6 renumbered as 20.8 by [PR737905](#) ppc 01Jul22]

Where the employer requires an employee to install and/or maintain a telephone for the purpose of being on call, the employer will refund the installation costs and the subsequent rental charges on production of receipted accounts.

20.9 Heat allowance

[20.7 renumbered as 20.9 by [PR737905](#) ppc 01Jul22]

- (a) Where work continues for more than two hours in temperatures exceeding 46 degrees Celsius employees will be entitled to 20 minutes rest after every two hours' work without deduction of pay.
- (b) It will be the responsibility of the employer to ascertain the temperature.
- (c) The following amounts will be paid to employees employed at their current place of work prior to 8 August 1991, in the prescribed circumstances in addition to any other amounts specified elsewhere in this award. Where an employee works for more than one hour in the shade in places where the temperature is raised by artificial means and:
 - (i) exceeds 40 degrees Celsius but does not exceed 46 degrees Celsius—0.05% of the [standard rate](#) per hour or part thereof; or
 - (ii) exceeds 46 degrees Celsius—0.06% of [standard rate](#) per hour or part thereof.

20.10 Board and lodging

[20.8 renumbered as 20.10 by [PR737905](#) ppc 01Jul22]

Where the employer provides board and lodging, the wage rates prescribed in this award will be reduced by the following amounts per week:

[20.10(a) varied by [PR998179](#), [PR509252](#), [PR523082](#), [PR536885](#), [PR551808](#), [PR566909](#), [PR592355](#), [PR606578](#), [PR704211](#), [PR707745](#), [PR719070](#), [PR729543](#), [PR740949](#), [PR762377](#), [PR774158](#), [PR786807](#), [PR799535](#) ppc 01Jul26]

- (a) employees receiving full adult rate of pay—\$32.63; or

[20.10(b) varied by [PR998179](#), [PR509252](#), [PR523082](#), [PR536885](#), [PR551808](#), [PR566909](#), [PR592355](#), [PR606578](#), [PR704211](#), [PR707745](#), [PR719070](#), [PR729543](#), [PR740949](#), [PR762377](#), [PR774158](#), [PR786807](#), [PR799535](#) ppc 01Jul26]

- (b) where the employee buys their meals at ruling cafeteria rates, by an additional amount of—\$20.32.

20.11 On call allowance

[20.9 renumbered as 20.11 and substituted by [PR737905](#) ppc 01Jul22; varied by [PR740786](#); corrected by [PR743157](#); varied by [PR743155](#)]

An employee required by the employer to be on call (i.e. available for recall to duty at the employer's or client's premises and/or for remote work) will be paid an allowance of:

[20.11(a) varied by [PR740786](#) ppc 01Jul22; corrected by [PR743157](#); varied by [PR743155](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

- (a) **2.0%** of the standard rate (\$25.66) for any 24-hour period or part thereof during the period from the time of finishing ordinary duty on Monday to the time of finishing ordinary duty on Friday; or

[20.11(b) varied by [PR740786](#) ppc 01Jul22; corrected by [PR743157](#); varied by [PR743155](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

- (b) **3.96%** of the standard rate (\$50.81) in respect of any other 24-hour period or part thereof, or any public holiday or part thereof.

20.12 Broken shift allowance

[20.12 inserted by [PR737905](#) ppc 01Jul22; varied by [PR740786](#); corrected by [PR743157](#); varied by [PR743155](#)]

[20.12(a) varied by [PR740786](#) ppc 01Jul22; corrected by [PR743157](#); varied by [PR743155](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

- (a) An employee required to work a broken shift with 1 unpaid break in accordance with clause 25.6(a) will be paid an allowance of **1.7%** (\$21.81) of the standard rate, per broken shift.

[20.12(b) varied by [PR740786](#) ppc 01Jul22; corrected by [PR743157](#); varied by [PR743155](#), [PR762209](#), [PR773989](#), [PR786639](#), [PR799380](#) ppc 01Jul26]

- (b) An employee who agrees to work a broken shift with 2 unpaid breaks in accordance with clause 25.6(b) will be paid an allowance of **2.25%** (\$28.87) of the standard rate, per broken shift.

21. District allowances

[21 renumbered as 20 by [PR995399](#); 20 renumbered as 21 by [PR508061](#); deleted by [PR561478](#) ppc 05Mar15]

22. Accident pay

[22 renumbered as 21 by [PR995399](#); varied by [PR503704](#); 21 renumbered as 22 by [PR508061](#); deleted by [PR561478](#) ppc 05Mar15]

23. Superannuation

[Varied by [PR992047](#), [PR994887](#); 23 renumbered as 22 by [PR995399](#), 22 renumbered as 23 by [PR508061](#) ppc 01Jan10; varied by [PR530253](#), [PR532387](#), [PR533377](#), [PR546089](#), [PR743364](#), [PR771375](#), [PR794791](#)]

23.1 Superannuation legislation

[23.1 substituted by [PR771375](#) ppc 09Apr24]

- (a) The [NES](#) and Superannuation legislation, including the *Superannuation Guarantee (Administration) Act 1992* (Cth), the *Superannuation Guarantee Charge Act 1992* (Cth), the *Superannuation Industry (Supervision) Act 1993* (Cth) and the *Superannuation (Resolution of Complaints) Act 1993* (Cth), deal with the superannuation rights and obligations of employers and employees.
- (b) The rights and obligations in clause 23 supplement those in superannuation legislation and the [NES](#).

NOTE: Under superannuation legislation:

- (a) Individual employees generally have the opportunity to choose their own superannuation fund.
- (b) If a new employee does not choose a superannuation fund, the employer must ask the Australian Taxation Office (ATO) whether the employee is an existing member of a stapled superannuation fund and, if stapled fund details are provided by the ATO, make contributions to the stapled fund.
- (c) If an employee does not choose a superannuation fund and does not have a stapled fund, the choice of superannuation fund requirements will be satisfied by contributions made to a superannuation fund nominated in the award covering the employee, provided the fund is able to accept contributions for the benefit of the employee.
- (d) A fund may not be able to accept contributions for the benefit of an employee if the employee would be a new member of the fund's MySuper product and the MySuper product is closed to new members because it has failed the performance tests of Australian Prudential Regulation Authority (APRA) for 2 consecutive years.

23.2 Employer contributions

An employer must make such superannuation contributions to a superannuation fund for the benefit of an employee as will avoid the employer being required to pay

the superannuation guarantee charge under superannuation legislation with respect to that employee.

23.3 Voluntary employee contributions

- (a) Subject to the governing rules of the relevant superannuation fund, an employee may, in writing, authorise their employer to pay on behalf of the employee a specified amount from the post-taxation wages of the employee into the same superannuation fund as the employer makes the superannuation contributions provided for in clause 23.2.
- (b) An employee may adjust the amount the employee has authorised their employer to pay from the wages of the employee from the first of the month following the giving of three months' written notice to their employer.
- (c) The employer must pay the amount authorised under clauses 23.3(a) or 23.3(b) no later than 28 days after the end of the month in which the deduction authorised under clauses 23.3(a) or (b) was made.

23.4 Superannuation fund

[23.4 varied by [PR771375](#); substituted by [PR794791](#) ppc 23Jan26]

Unless, to comply with superannuation legislation, the employer is required to make the superannuation contributions provided for in clause 23.2 to another superannuation fund, the employer must make the superannuation contributions provided for in clause 23.2 and pay any amount authorised under clauses 23.3(a) or 23.3(b) to one of the following superannuation funds or its successor, provided that, in respect of new employees, the fund is able to accept new beneficiaries:

- (a) Aware Super;
- (b) Prime Super;
- (c) HESTA;
- (d) Equisuper;
- (e) Australian Retirement Trust;
- (f) CareSuper;
- (g) NGS Super;
- (h) AustralianSuper;
- (i) HOSTPLUS Superannuation Fund;

- (j) any superannuation fund to which the employer was making superannuation contributions for the benefit of its employees before 12 September 2008, provided the superannuation fund is an eligible choice fund and is a fund that offers a MySuper product or is an exempt public sector superannuation scheme; or
- (k) a superannuation fund or scheme which the employee is a defined benefit member of.

23.5 Absence from work—Social and community services employees

Subject to the governing rules of the relevant superannuation fund, the employer must also make the superannuation contributions provided for in clause 23.2 and pay the amount authorised under clauses 23.3(a) or (b):

- (a) **Paid leave**—while the employee is on any paid leave;
- (b) **Work-related injury or illness**—for the period of absence from work (subject to a maximum of 52 weeks) of the employee due to work-related injury or work-related illness provided that:
 - (i) the employee is receiving workers compensation payments or is receiving regular payments directly from the employer in accordance with the statutory requirements; and
 - (ii) the employee remains employed by the employer.

24. Payment of wages

[24 renumbered as 23 by [PR995399](#), 23 renumbered as 24 by [PR508061](#) ppc 01Jan10; varied by [PR610134](#)]

[Paragraph numbered as 24.1 by [PR610134](#) ppc 01Nov18]

24.1 Wages will be paid weekly or fortnightly by cash, cheque or electronic funds transfer into the bank or financial institution account nominated by the employee.

24.2 Payment on termination of employment

[24.2 inserted by [PR610134](#) ppc 01Nov18]

- (a) The employer must pay an employee no later than 7 days after the day on which the employee's employment terminates:
 - (i) the employee's wages under this award for any complete or incomplete pay period up to the end of the day of termination; and
 - (ii) all other amounts that are due to the employee under this award and the [NES](#).

- (b) The requirement to pay wages and other amounts under paragraph (a) is subject to further order of the Commission and the employer making deductions authorised by this award or the [Act](#).

Note 1: Section 117(2) of the [Act](#) provides that an employer must not terminate an employee's employment unless the employer has given the employee the required minimum period of notice or "has paid" to the employee payment instead of giving notice.

Note 2: Paragraph (b) allows the Commission to make an order delaying the requirement to make a payment under this clause. For example, the Commission could make an order delaying the requirement to pay redundancy pay if an employer makes an application under s.120 of the [Act](#) for the Commission to reduce the amount of redundancy pay an employee is entitled to under the [NES](#).

Note 3: State and Territory long service leave laws or long service leave entitlements under s.113 of the [Act](#), may require an employer to pay an employee for accrued long service leave on the day on which the employee's employment terminates or shortly after.

Part 5—Hours of Work and Related Matters

25. Ordinary hours of work and rostering

[25 renumbered as 24 and varied by [PR995399](#), 24 renumbered as 25 by [PR508061](#) ppc 01Jan10; varied by [PR531544](#), [PR700681](#), [PR737905](#), [PR798459](#)]

25.1 Ordinary hours of work

- (a) The ordinary hours of work will be 38 hours per week or an average of 38 hours per week and will be worked either:
- (i) in a week of five days in shifts not exceeding eight hours each;
 - (ii) in a fortnight of 76 hours in 10 shifts not exceeding eight hours each; or
 - (iii) in a four week period of 152 hours to be worked as 19 shifts of eight hours each, subject to practicality.

[25.1(b) substituted by [PR798459](#) ppc 01Jun26]

- (b) By agreement between the employer and employee, the ordinary hours in clause 25.1(a) may be worked up to 10 hours per shift (other than in circumstances in clause 25.1(c)).

[25.1(c) inserted by [PR798459](#) ppc 01Jun26]

- (c) By agreement between the employer and employee, the ordinary hours in clause 25.1(a) may be worked up to 12 hours per shift in circumstances in which part of the shift is performed immediately before and part of the shift immediately after a sleepover period in accordance with clause 25.7. In such circumstances, a maximum of eight ordinary hours of work may be worked before or after a sleepover period.

25.2 Span of hours

(a) Day worker

The ordinary hours of work for a day worker will be worked between 6.00 am and 8.00 pm Monday to Sunday.

(b) Shiftworker

A shiftworker is an employee who works shifts in accordance with clause 29—Shiftwork.

25.3 Rostered days off

Employees, other than a casual employee, will be free from duty for not less than two full days in each week or four full days in each fortnight or eight full days in each 28 day cycle. Where practicable, days off will be consecutive.

25.4 Rest breaks between rostered work

[25.4 substituted by [PR531544](#); [PR798459](#) ppc 01Jun26]

- (a) An employee will be allowed a break of not less than 10 hours between the end of one shift or period of work and the start of another;
- (b) Notwithstanding the provisions of clause 25.4(a), by agreement between the employee and employer, the break between:
 - (i) the end of a shift and the commencement of a shift directly preceding a sleepover; or
 - (ii) a shift commencing after the end of a shift directly following a sleepover may not be less than 8 hours.
- (c) A period of sleepover in accordance with clause 25.7 does not constitute a break within the meaning of this clause. Periods of work performed immediately before and immediately after a sleepover period shall be treated as part of the same shift.

- (d) Clause 25.4(a) does not prevent an employee from performing work immediately before and immediately after a sleepover period (as provided for in clause 25.7) where the periods of work include ordinary hours which are part of the same shift.

25.5 Rosters

- (a) The ordinary hours of work for each employee will be displayed on a fortnightly roster in a place conveniently accessible to employees. The roster will be posted at least two weeks before the commencement of the roster period.

[25.5(b) substituted by [PR700681](#) ppc 01Oct18]

- (b) Rostering arrangements and changes to rosters may be communicated by telephone, direct contact, mail, email, facsimile or any electronic means of communication.
- (c) It is not obligatory for the employer to display any roster of the ordinary hours of work of casual or relieving staff.

(d) Change in roster

[25.5(d) substituted by [PR531544](#) ppc 21Nov12]

- (i) Seven days' notice will be given of a change in a roster.

[25.5(d)(ii) substituted by [PR737905](#) ppc 01Jul22]

- (ii) However, a roster may be changed at any time:
 - (A) if the change is proposed by an employee to accommodate an agreed shift swap with another employee, subject to the agreement of the employer; or
 - (B) to enable the service of the organisation to be carried on where another employee is absent from duty on account of illness, or in an emergency.
- (iii) This clause will not apply where the only change to the roster of a part-time employee is the mutually agreed addition of extra hours to be worked such that the part-time employee still has four rostered days off in that fortnight or eight rostered days off in a 28 day roster cycle, as the case may be.
- (e) Where practicable, accrued days off (ADOs) will be displayed on the roster.

(f) Client cancellation

[25.5(f) substituted by [PR737905](#) ppc 01Jul22]

- (i)** Clause 25.5(f) applies where a client cancels a scheduled home care or disability service, within 7 days of the scheduled service, which a full-time or part-time employee was rostered to provide. For the purposes of clause 25.5(f), a client cancellation includes where a client reschedules a scheduled home care or disability service.
- (ii)** Where a service is cancelled by a client under clause 25.5(f)(i), the employer may either:

 - (A)** direct the employee to perform other work during those hours in which they were rostered; or
 - (B)** cancel the rostered shift or the affected part of the shift.
- (iii)** Where clause 25.5(f)(ii)(A) applies, the employee will be paid the amount payable had the employee performed the cancelled service or the amount payable in respect of the work actually performed, whichever is the greater.
- (iv)** Where clause 25.5(f)(ii)(B) applies, the employer must either:

 - (A)** pay the employee the amount they would have received had the shift or part of the shift not been cancelled; or
 - (B)** subject to clause 25.5(f)(v), provide the employee with make-up time in accordance with clause 25.5(f)(vi).
- (v)** The make-up time arrangement can only be used where the employee was notified of the cancelled shift (or part thereof) at least 12 hours prior to the scheduled commencement of the cancelled service. If less than 12 hours' notice is provided, clause 25.5(f)(iv)(A) applies.
- (vi)** Where the employer elects to provide make-up time:

 - (A)** despite clause 25.5(a), the employer must provide the employee with 7 days' notice of the make-up time (or a lesser period by agreement with the employee);
 - (B)** the make-up time must be worked within 6 weeks of the date of the cancelled service;

- (C) the employer must consult with the employee in accordance with clause 8A—Consultation about changes to rosters or hours of work regarding when the make-up time is to be worked;
 - (D) the make-up time can include work with other clients or in other areas of the employer’s business provided the employee has the skill and competence to perform the work; and
 - (E) an employee who works make-up time will be paid the amount payable had the employee performed the cancelled service or the amount payable in respect of the work actually performed, whichever is the greater.
- (vii) Clause 25.5(f) is intended to operate in conjunction with clause 25.5(d) and does not prevent an employer from changing a roster under clause 25.5(d)(i) or (d)(ii).

25.6 Broken shifts

[25.6 varied by [PR995399](#); 25.6 substituted by [PR737905](#) ppc 01Jul22]

This clause only applies to social and community services employees when undertaking disability services work and home care employees.

- (a) Broken shift with 1 unpaid break
 - (i) An employer may only roster an employee to work a broken shift of 2 periods of work with 1 unpaid break (other than a meal break).
 - (ii) An employee rostered to work a broken shift with 1 unpaid break must be paid the allowance in clause 20.12(a).
- (b) **Agreement to work a broken shift with 2 unpaid breaks**
 - (i) Despite clause 25.6(a), an employer and an employee may agree that the employee will work a broken shift of 3 periods of work with 2 unpaid breaks (other than meal breaks).
 - (ii) An agreement under clause 25.6(b)(i) must be made before each occasion that the employee is to work a broken shift with 2 unpaid breaks unless the working of the 2 break broken shift is part of the agreed regular pattern of work in an agreement made under clause 10.3 or subsequently varied.
 - (iii) An employee who works a broken shift with 2 unpaid breaks must be paid the allowance in clause 20.12(b).

- (c) Where a break in work falls within a minimum payment period in accordance with clause 10.5 then it is to be counted as time worked and does not constitute a break in a shift for the purposes of clause 25.6(a)(i) or clause 25.6(b)(i).
- (d) Payment for a broken shift will be at ordinary pay with weekend, overtime and public holiday penalty rates to be paid in accordance with clauses 26—Saturday and Sunday work, 28—Overtime and penalty rates and 34—Public holidays.
- (e) An employee must be paid the shift allowances in accordance with clause 29—Shiftwork in relation to work performed on a broken shift, provided that:
 - (i) The shift allowances are only payable in respect of periods of work in a broken shift that satisfy the definitions of afternoon shift, night shift and public holiday shift (as defined by clause 29.2 and in accordance with clause 25.6(e)(i)).
 - (ii) (The night shift allowance is not payable for work performed on a night shift that commences before 6.00 am.

Example: If an employee performs work on a broken shift from 9.00 am to 11.00am (first period of work) and then from 5.30 pm to 8.30 pm (second period of work), the afternoon shift allowance will be payable on the second period of work only.

- (f) The span of hours for a broken shift is up to 12 hours. All work performed beyond a span of 12 hours will be paid at double time.
- (g) An employee must receive a minimum break of 10 hours between broken shifts rostered on successive days.

25.7 Sleepovers

[25.7 substituted by [PR531544](#) ppc 21Nov12]

- (a) A sleepover means when an employer requires an employee to sleep overnight at premises where the client for whom the employee is responsible is located (including respite care) and is not a 24 hour care shift pursuant to clause 25.8 or an excursion pursuant to clause 25.9.
- (b) The provisions of 25.5 apply for a sleepover. An employee may refuse a sleepover in the circumstances contemplated in 25.5(d)(i) but only with reasonable cause.

[25.7(c) substituted by [PR737905](#) ppc 01Jul22]

- (c) The span for a sleepover will be a continuous period of 8 hours. Employees will be provided with a separate room with a bed and clean linen, the use of appropriate facilities (including access to food preparation facilities and staff facilities where these exist) and free board and lodging for each night when the employee sleeps over.
- (d) The employee will be entitled to a sleepover allowance of 4.9% of the [standard rate](#) for each night on which they sleep over.
- (e) In the event of the employee on sleepover being required to perform work during the sleepover period, the employee will be paid for the time worked at the prescribed overtime rate with a minimum payment as for one hour worked. Where such work exceeds one hour, payment will be made at the prescribed overtime rate for the duration of the work.
- (f) An employer may roster an employee to perform work immediately before and/or immediately after the sleepover period, but must roster the employee or pay the employee for at least four hours' work for at least one of these periods of work. The payment prescribed by 25.7(d) will be in addition to the minimum payment prescribed by this subclause.
- (g) The dispute resolution procedure in clause 9 of this Award applies to the sleepover provisions.

25.8 24 hour care

[25.8 substituted by [PR737905](#) ppc 01Jul22]

This clause only applies to home care employees.

- (a) A **24-hour care** shift requires an employee to be available for duty in a client's home for a 24-hour period. During this period, the employee is required to provide the client with the services specified in the care plan. The employee is required to provide a total of no more than 8 hours of care during this period.
- (b) An employer may only require an employee to work a 24-hour care shift by agreement.
- (c) The employee will be afforded the opportunity to sleep for a continuous period of 8 hours during a 24-hour care shift and employees will be provided with a separate room with a bed and clean linen, the use of appropriate facilities (including access to food preparation facilities and staff facilities where these exist) and free board and lodging for each night when the employee sleeps over.

- (d) The employee will be paid 8 hours' work at 155% of their appropriate rate for each 24-hour period.
- (e) If the employee is required to perform more than 8 hours' work during a 24-hour care shift, that work shall be treated as overtime and paid at the rate of time and a half for the first 2 hours and double time thereafter, except on Sundays when overtime will be paid for at the rate of double time, and on public holidays at the rate of double time and a half. An employer and employee may utilise the TOIL arrangement in accordance with clause 28.2.
- (f) An employee may refuse to work more than 8 hours' work during a 24-hour care shift in circumstances where the requirement to work those additional hours is unreasonable.

25.9 Excursions

Where an employee agrees to supervise clients in excursion activities involving overnight stays from home, the following provisions will apply:

(a) Monday to Friday excursions

- (i) Payment at the ordinary rate of pay for time worked between the hours of 8.00 am to 6.00 pm Monday to Friday up to a maximum of 10 hours per day.
- (ii) The employer and employee may agree to accrual of time instead of overtime payment for all other hours.
- (iii) Payment of sleepover allowance in accordance with the provision of clause 25.7.

(b) Weekend excursions

Where an employee involved in overnight excursion activities is required to work on a Saturday and/or Sunday, the days worked in the two week cycle, including that weekend, will not exceed 10 days.

25.10 Remote work

[25.10 inserted by [PR737905](#) ppc 01Jul22]

- (a) This clause applies where an employee is required by their employer to perform remote work.
- (b) For the purpose of this clause, **remote work** means the performance of work by an employee at the direction of, or with the authorisation of, their employer that is:

- (i) not part of their ordinary hours of work rostered in accordance with clause 25.5 (or, in the case of casual employees, not a designated shift); and
- (ii) not additional hours worked by a part-time employee under clause 28.1(b)(iii) or 10.3(e) or overtime contiguous with a rostered shift; and
- (iii) not required to be performed at a designated workplace.

(c) Minimum payments for remote work

- (i) Where an employee performs remote work, they will be paid for the time spent performing remote work, with the following minimum payments applying:
 - (A) where the employee is on call between 6.00 am and 10.00 pm—a minimum payment of 15 minutes' pay;
 - (B) where the employee is on call between 10.00 pm and 6.00 am—a minimum payment of 30 minutes' pay;
 - (C) where the employee is not on call—a minimum payment of one hour's pay;
 - (D) where the remote work involves participating in staff meetings or staff training remotely—a minimum payment of one hour's pay.
- (ii) Any time worked continuously beyond the minimum payment period outlined above will be rounded up to the nearest 15 minutes and paid accordingly.
- (iii) Where multiple instances of remote work are performed on any day, separate minimum payments will be triggered for each instance of remote work performed, save that where multiple instances of remote work are performed within the applicable minimum payment period, only one minimum payment period is triggered.

(d) Rates of pay for remote work

- (i) Remote work will be paid at the employee's minimum hourly rate unless one of the following exceptions applies:
 - (A) Remote work performed outside the span of 6am to 8pm will be paid at the rate of **150%** of the minimum hourly rate for the first two hours and **200%** of the minimum hourly rate thereafter or, in the case of casual employees, at **175%** of the minimum hourly rate

for the first two hours and **225%** of the minimum hourly rate thereafter;

- (B)** Remote work performed in excess of 38 hours per week or 76 hours per fortnight will be paid at the applicable overtime rate prescribed in clause 28.1;
 - (C)** Remote work performed in excess of 10 hours per day will be paid at the rate of **150%** of the minimum hourly rate for the first two hours and **200%** of the minimum hourly rate thereafter or in the case of casual employees, **175%** of the minimum hourly rate for the first 2 hours and **225%** of the minimum hourly rate thereafter;
 - (D)** Remote work performed on a Saturday will be paid at the rate of **150%** of the minimum hourly rate or, in the case of casual employees, **175%** of the minimum hourly rate;
 - (E)** Remote work performed on a Sunday, it will be paid at the rate of **200%** of the minimum hourly rate or, in the case of casual employees, **225%** of the minimum hourly rate;
 - (F)** Remote work performed on a public holiday will be paid at the rate of **250%** of the minimum hourly rate or, in the case of casual employees, **275%** of the minimum hourly rate.
- (ii)** The rates of pay in clause 25.10(d)(i) above are in substitution for and not cumulative upon the rates prescribed in clauses 26—Saturday and Sunday work, 28—Overtime and penalty rates, 29—Shiftwork and 34—Public holidays.

(e) Other requirements

An employee who performs remote work must maintain and provide to their employer a time sheet or other record acceptable to the employer specifying the time at which they commenced and concluded performing any remote work and a description of the work that was undertaken. Such records must be provided to the employer within a reasonable period of time after the remote work is performed.

(f) Miscellaneous provisions

- (i)** In this clause, the term ‘minimum hourly rate’ means the weekly rates prescribed by clauses 15—Minimum weekly wages for social and community services employees and crisis accommodation employees,

16—Minimum weekly wages for family day care employees and 17—Minimum weekly wages for home care employees (as applicable) divided by 38.

- (ii) Where remote work is performed, the minimum payments at clause 10.5 do not apply.
- (iii) The performance of remote work will not count as work or overtime for the purpose of the following clauses:
 - (A) Clause 25.3—Rostered days off;
 - (B) Clause 25.4—Rest breaks between rostered work;
 - (C) Clause 28.3—Rest period after overtime;
 - (D) Clause 28.5—Rest break during overtime.

25A. Employee right to disconnect

[25A inserted by [PR778073](#) from 26Aug24]

25A.1 Clause 25A provides for the exercise of an employee’s right to disconnect under section 333M of the [Act](#).

NOTE:

- (a) Section 333M provides that, unless it is unreasonable to do so, an employee may refuse to monitor, read or respond to contact, or attempted contact, from:
 - (1) their employer outside of the employee’s working hours,
 - (2) a third party if the contact or attempted contact relates to, their work and is outside of the employee's working hours.
- (b) Section 333M(3) lists matters that must be taken into account in determining whether an employee’s refusal is unreasonable.
- (c) Section 333M(5) provides that an employee’s refusal will be unreasonable if the contact or attempted contact is required under a law of the Commonwealth, a State or a Territory.
- (d) Section 333N provides for the resolution of disputes about whether an employee’s refusal is unreasonable and about the operation of section 333M.

- (e) The general protections in Part 3–1 of the [Act](#) prohibit an employer taking adverse action against an employee because of the employee’s right to disconnect under section 333M of the [Act](#).

25A.2 Clause 25A applies from the following dates:

- (a) 26 August 2024—for employers that are not small business employers on this date and their employees.
- (b) 26 August 2025—for employers that are small business employers on 26 August 2024 and their employees.

25A.3 An employer must not directly or indirectly prevent an employee from exercising their right to disconnect under the [Act](#).

25A.4 Clause 25A.3 does not prevent an employer from requiring an employee to monitor, read or respond to contact, or attempted contact, from the employer outside of the employee’s working hours where:

- (a) the employee is being paid the on call allowance under clause 20.11; and
- (b) the employer’s contact is to notify the employee that they are required to attend or perform work or give other notice about the on call.

25A.5 Clause 25A.3 does not prevent an employer from contacting, or attempting to contact, an employee outside of the employee’s working hours in circumstances including to notify them of:

- (a) an emergency roster change under clause 25.5(d)(ii)(B); or
- (b) a recall to work under clause 25.10 or clause 28.4.

26. Saturday and Sunday work

[26 renumbered as 25 by [PR995399](#), 25 renumbered as 26 by [PR508061](#) ppc 01Jan10; (varied by [PR539625](#) quashed in part by [\[2014\] FWCFB 379](#)); substituted by [PR546788](#), [PR713525](#) ppc 01Jul20]

26.1 Employees whose ordinary working hours include work on a Saturday and/or Sunday will be paid for ordinary hours worked between midnight on Friday and midnight on Saturday at 150% of the ordinary rate of pay, and for ordinary hours worked between midnight on Saturday and midnight on Sunday at 200% of the ordinary rate of pay.

26.2 The rates in clause 26.1 are in substitution for and not cumulative upon the shift premiums prescribed in clause 29—Shiftwork and are not applicable to overtime worked on a Saturday and Sunday.

26.3 Casual employees will be paid the casual loading in clause 10.4 in addition to the Saturday and Sunday rates at clause 26.1.

26.4 A casual employee who works on a weekend will be paid at the following rates:

- (a) between midnight Friday and midnight Saturday – 175% of the ordinary rate of pay (inclusive of the casual loading); and
- (b) between midnight Saturday and midnight Sunday – 225% of the ordinary rate of pay (inclusive of the casual loading).

27. Breaks

[27 renumbered as 26 by [PR995399](#), 26 renumbered as 27 by [PR508061](#) ppc 01Jan10; varied by [PR531544](#)]

27.1 Meal breaks

- (a) Each employee who works in excess of five hours will be entitled to an unpaid meal break of not less than 30 minutes and not more than 60 minutes duration, to be taken at a mutually agreed time after commencing work.
- (b) Where an employee is required to work during a meal break and continuously thereafter, they will be paid overtime for all time worked until the meal break is taken.

[27.1(c) substituted by [PR531544](#) ppc 21Nov12]

- (c) Where an employee is required by the employer to have a meal with a client or clients as part of the normal work routine or client program, they will be paid for the duration of the meal period at the ordinary rate of pay, and clause 27.1(a) does not apply. This paid meal period is to be counted as time worked.

27.2 Tea breaks

- (a) Every employee will be entitled to a paid 10 minute tea break in each four hours worked at a time to be agreed between the employer and employee.
- (b) Tea breaks will count as time worked.

28. Overtime and penalty rates

[28 renumbered as 27 by [PR995399](#), 27 renumbered as 28 by [PR508061](#) ppc 01Jan10; varied by [PR546788](#), [PR587178](#), [PR713525](#), [PR737905](#), [PR763307](#); [PR798459](#)]

28.1 Overtime rates

[28.1 substituted by [PR737905](#) ppc 01Jul22]

(a) Full-time employees

[28.1(a) varied by [PR798459](#) ppc 01Jun26]

A full-time employee will be paid the following payments for all work done in addition to their rostered ordinary hours either on any day or on any shift and, in the case of day workers, for work done outside the span of hours under clause 25.2(a):

- (i) disability services, home care and day care employees—for all authorised overtime on Monday to Saturday, payment will be made at the rate of time and a half for the first 2 hours and double time thereafter;
- (ii) social and community services and crisis accommodation employees—for all authorised overtime on Monday to Saturday, payment will be made at the rate of time and a half for the first 3 hours and double time thereafter;
- (iii) for all authorised overtime on a Sunday, payment will be made at the rate of double time;
- (iv) for all authorised overtime on a public holiday, payment will be made at the rate of double time and a half; and
- (v) overtime rates under this clause will be in substitution for, and not cumulative upon, the shift premiums prescribed in clause 29—Shiftwork, and Saturday and Sunday work premiums prescribed in clause 26—Saturday and Sunday work.

(b) Part-time employees and casual employees

- (i) All time worked by part-time or casual employees in excess of 38 hours per week or 76 hours per fortnight will be paid for at the rate of time and a half for the first 2 hours and double time thereafter, except that on Sundays such overtime will be paid for at the rate of double time and on public holidays at the rate of double time and a half.

[28.1(b)(ii) substituted by [PR798459](#) ppc 01Jun26]

- (ii)** All time worked by part-time or casual employees which exceeds 10 hours either per day or per shift, will be paid at the rate of time and a half for the first 2 hours and double time thereafter, except on Sundays when overtime will be paid for at the rate of double time, and on public holidays at the rate of double time and a half.

[28.1(b)(iii) substituted by [PR798459](#) ppc 01Jun26]

- (iii)** Despite clause 28.1(b)(ii), where part of a shift is performed immediately before and part of the shift immediately after a sleepover period, all time worked by part-time or casual employees which exceeds 12 hours either per day or per shift will be paid at the rate of time and a half for the first 2 hours and double time thereafter, except on Sundays when overtime will be paid at the rate of double time, and on public holidays at the rate of double time and a half.

[28.1(b)(iv) substituted by [PR798459](#) ppc 01Jun26]

- (iv)** Clause 28.1(b)(iii) applies only if the employee and the employer have agreed that the employee will perform a 12 hour shift with part of a shift performed immediately before and part of the shift immediately after a sleepover period. In such circumstances, a maximum of eight ordinary hours may be worked before or after a sleepover period.

[28.1(b)(v) substituted by [PR798459](#) ppc 01Jun26]

- (v)** Time worked up to the hours prescribed in clause 28.1(b)(ii) or clause 28.1(b)(iii) will, subject to clause 28.1(b)(i), not be regarded as overtime and will be paid for at the ordinary rate of pay (including the casual loading in the case of casual employees).

[28.1(b)(vi) inserted by [PR798459](#) ppc 01Jun26]

- (vi)** All time worked outside the span of hours by part-time and casual day workers will be paid for at the rate of time and a half for the first two hours and double time thereafter, except that on Sundays such overtime will be paid for at the rate of double time and on public holidays at the rate of double time and a half.

[28.1(b)(vii) inserted by [PR798459](#) ppc 01Jun26]

- (vii)** Overtime rates payable under clause 28.1(b) will be in substitution for and not cumulative upon the shift premiums prescribed in clause 29—

Shiftwork and are not applicable to ordinary hours worked on a Saturday or Sunday.

28.2 Time off instead of payment for overtime

[28.2 substituted by [PR546788](#), [PR587178](#) ppc 14Dec16]

- (a) An employee and employer may agree in writing to the employee taking time off instead of being paid for a particular amount of overtime that has been worked by the employee.
- (b) Any amount of overtime that has been worked by an employee in a particular pay period and that is to be taken as time off instead of the employee being paid for it must be the subject of a separate agreement under clause 28.2.
- (c) The period of time off that an employee is entitled to take is the same as the number of overtime hours worked.

EXAMPLE: By making an agreement under clause 28.2 an employee who worked 2 overtime hours is entitled to 2 hours' time off.

- (d) Time off must be taken:
 - (i) within the period of 3 months after the overtime is worked; and
 - (ii) at a time or times within that period of 3 months agreed by the employee and employer.
- (e) If the employee requests at any time, to be paid for overtime covered by an agreement under clause 28.2 but not taken as time off, the employer must pay the employee for the overtime, in the next pay period following the request, at the overtime rate applicable to the overtime when worked, based on the rates of pay applying at the time payment is made.
- (f) If time off for overtime that has been worked is not taken within the period of 3 months mentioned in paragraph (d), the employer must pay the employee for the overtime, in the next pay period following those 3 months, at the overtime rate applicable to the overtime when worked, based on the rates of pay applying at the time payment is made.
- (g) The employer must keep a copy of any agreement under clause 28.2 as an employee record.
- (h) An employer must not exert undue influence or undue pressure on an employee to make, or not make, an agreement to take time off instead of payment for overtime.

- (i) An employee may, under section 65 of the [Act](#), request to take time off, at a time or times specified in the request or to be subsequently agreed by the employer and the employee, instead of being paid for overtime worked by the employee. If the employer agrees to the request then clause 28.2 will apply, including the requirement for separate written agreements under paragraph (b) for overtime that has been worked.

[Note varied by [PR763307](#) ppc 01Aug23]

Note: If an employee makes a request under section 65 of the [Act](#) for a change in working arrangements, the employer may only refuse that request on reasonable business grounds (see section 65A(3) of the [Act](#)).

- (j) If, on the termination of the employee's employment, time off for overtime worked by the employee to which clause 28.2 applies has not been taken, the employer must pay the employee for the overtime at the overtime rate applicable to the overtime when worked, based on the rates of pay applying at the time payment is made.

Note: Under section 345(1) of the [Act](#), a person must not knowingly or recklessly make a false or misleading representation about the workplace rights of another person under clause 28.2.

28.3 Rest period after overtime

- (a) An employee, other than a casual, who works so much overtime between the termination of their ordinary work on any day or shift and the commencement of their ordinary work on the next day or shift that they have not had at least 10 consecutive hours off duty between those times, will be released after completion of such overtime until they have had 10 consecutive hours off duty without loss of pay for rostered ordinary hours occurring during such absence.
- (b) If, on the instructions of the employer, such an employee resumes or continues work without having had 10 consecutive hours off duty, they will be paid at the rate of double time until they are released from duty for such rest period and they will then be entitled to be absent until they have had 10 consecutive hours off duty without loss of pay for rostered ordinary hours occurring during such absence.

28.4 Recall to work overtime

[28.4 substituted by [PR737905](#) ppc 01Jul22]

An employee who is recalled to work overtime after leaving the workplace and requested by their employer to attend a workplace in order to perform such

overtime work will be paid for a minimum of two hours' work at the appropriate rate for each time recalled. If the work required is completed in less than two hours the employee will be released from duty.

28.5 Rest break during overtime

- (a) An employee recalled to work overtime after leaving the employer's or client's premises and who is required to work for more than four hours will be allowed 20 minutes for the partaking of a meal and a further 20 minutes after each subsequent four hours' overtime; all such time will be counted as time worked.
- (b) The meals referred to in clause 28.5(a) will be allowed to the employee free of charge. Where the employer is unable to provide such meals, a meal allowance, as prescribed in clause 20.5, will be paid to the employee concerned.

29. Shiftwork

[29 renumbered as 28 by [PR995399](#), 28 renumbered as 29 by [PR508061](#) ppc 01Jan10; 29 varied by [PR511465](#), [PR737905](#); [PR798459](#)]

29.1 Engagement in shiftwork

Where an employer wishes to engage an employee in shiftwork, the employer will advise the employee in writing, specifying the period over which the shift is ordinarily worked.

29.2 Definitions

[29.2(a) deleted by [PR511465](#) from 01Jan10; 29.2(b), 29.2(c) and 29.2(d) renumbered as 29.2(a), 29.2(b) and 29.2(c) respectively by [PR511465](#) from 01Jan10]

- (a) **Afternoon shift** means any shift which finishes after 8.00 pm and at or before 12 midnight Monday to Friday.
- (b) **Night shift** means any shift which finishes after 12 midnight or commences before 6.00 am Monday to Friday.
- (c) A **public holiday shift** means any time worked between midnight on the night prior to the public holiday and midnight of the public holiday.

29.3 Shift allowances and penalty rates

- (a) An employee who works an afternoon shift will be paid a loading of 12.5% of their ordinary rate of pay for the whole of such shift.

- (b) An employee who works a night shift will be paid a loading of 15% of their ordinary rate of pay for the whole of such shift.
- (c) An employee who works a public holiday shift will be paid a loading of 150% of their ordinary rate of pay for that part of such shift which is on the public holiday.

[29.3(d) inserted by [PR798459](#) ppc 01Jun26]

- (d) Where an employee is rostered to perform work immediately before and immediately after a sleepover period in accordance with clause 25.7, the portion of work prior to and following the sleepover will be treated separately for the purposes of determining the loading to be paid under clauses 29.3(a), 29.3(b) or 29.3(c).

Example: If an employee performs work on a shift prior to a sleepover period from 9.00 pm to 11.00 pm (first period of work) and then, after the sleepover, from 7.00 am to 11.00 am (second period of work), the afternoon shift allowance will be payable on the first period of work only.

[29.4 substituted by [PR737905](#) ppc 01Jul22]

- 29.4** Shifts are to be worked in one continuous block of hours that may include meal breaks and sleepovers, except where broken in accordance with clause 25.6.

30. Higher duties

[30 renumbered as 29 by [PR995399](#), 29 renumbered as 30 by [PR508061](#) ppc 01Jan10]

- 30.1** A home care employee engaged in any duties carrying a higher wage rate than the classification in which they are ordinarily employed in any one day or shift will be paid at the higher wage rate as follows:

- (a) for two hours or less—the time so worked; or
- (b) where the time so worked exceeds two hours—a full day or shift.

- 30.2** All other employees who are called upon to perform the duties of another employee in a higher classification under this award for a period of five consecutive working days or more will be paid for the period for which duties are assumed at a rate not less than the minimum rate prescribed for the classification applying to the employee so relieved.

30A. Requests for flexible working arrangements

[30A inserted by [PR701503](#) ppc 01Dec18; substituted by [PR763307](#) ppc 01Aug23]

Requests for flexible working arrangements are provided for in the [NES](#).

NOTE: Disputes about requests for flexible working arrangements may be dealt with under clause 9—Dispute resolution and/or under section 65B of the [Act](#).

Part 6—Leave and Public Holidays

31. Annual leave

[31 renumbered as 30 by [PR995399](#), 30 renumbered as 31 by [PR508061](#) ppc 01Jan10; varied by [PR583077](#), [PR737905](#), [PR779153](#)]

31.1 Annual leave is provided for in the [NES](#). This clause contains additional provisions.

31.2 Quantum of leave

[31.2 substituted by [PR737905](#) ppc 01Jul22]

For the purpose of the [NES](#), a shiftworker is:

- (a) an employee who works for more than 4 ordinary hours on 10 or more weekends during the yearly period in respect of which their annual leave accrues; or
- (b) an employee who works at least eight 24-hour care shifts in accordance with clause 25.8 during the yearly period in respect of which their annual leave accrues; and

is entitled to an additional week's annual leave on the same terms and conditions.

[31.2(c) inserted by [PR779153](#) ppc 01Jan25]

- (c) Clause 31.2 does not apply to an employee subject to clause 31.3.

[New clause 31.3 inserted by [PR779153](#) ppc 01Jan25]

31.3 Quantum of leave—employees previously covered by the *Nurses Award 2020*

- (a) Clause 31.3 only applies to an employee employed by their employer as a nursing assistant who was covered by the *Nurses Award 2020* on 31 December 2024 and who became covered by this award as a result of [PR779152](#).
- (b) An employee subject to this clause is entitled to the same quantum of annual leave as if they were covered by the *Nurses Award 2020*.

NOTE: In addition to the entitlements in the [NES](#), an employee under the *Nurses Award 2020* is entitled to an additional week of annual leave on the same terms and conditions.

31.4 Annual leave loading

[31.3 renumbered as 31.4 by [PR779153](#) ppc 01Jan25]

- (a) In addition to their ordinary pay, an employee, other than a shiftworker, will be paid an annual leave loading of 17.5% of their ordinary rate of pay.
- (b) Shiftworkers, in addition to their ordinary pay, will be paid the higher of:
 - (i) an annual leave loading of 17.5% of their ordinary rate of pay; or
 - (ii) the weekend and shift penalties the employee would have received had they not been on leave during the relevant period.

31.5 Annual leave in advance

[31.4 inserted by [PR583077](#) ppc 29Jul16; 31.4 renumbered as 31.5 by [PR779153](#) ppc 01Jan25]

- (a) An employer and employee may agree in writing to the employee taking a period of paid annual leave before the employee has accrued an entitlement to the leave.
- (b) An agreement must:
 - (i) state the amount of leave to be taken in advance and the date on which leave is to commence; and
 - (ii) be signed by the employer and employee and, if the employee is under 18 years of age, by the employee's parent or guardian.

Note: An example of the type of agreement required by clause 31.5 is set out at Schedule J. There is no requirement to use the form of agreement set out at Schedule J.

- (c) The employer must keep a copy of any agreement under clause 31.5 as an employee record.
- (d) If, on the termination of the employee's employment, the employee has not accrued an entitlement to all of a period of paid annual leave already taken in accordance with an agreement under clause 31.5, the employer may deduct from any money due to the employee on termination an amount equal to the amount that was paid to the employee in respect of any part of the period of annual leave taken in advance to which an entitlement has not been accrued.

31.6 Cashing out of annual leave

[31.5 inserted by [PR583077](#) ppc 29Jul16; 31.5 renumbered as 31.6 by [PR779153](#) ppc 01Jan25]

- (a) Paid annual leave must not be cashed out except in accordance with an agreement under clause 31.6.

- (b) Each cashing out of a particular amount of paid annual leave must be the subject of a separate agreement under clause 31.6.
- (c) An employer and an employee may agree in writing to the cashing out of a particular amount of accrued paid annual leave by the employee.
- (d) An agreement under clause 31.6 must state:
 - (i) the amount of leave to be cashed out and the payment to be made to the employee for it; and
 - (ii) the date on which the payment is to be made.
- (e) An agreement under clause 31.6 must be signed by the employer and employee and, if the employee is under 18 years of age, by the employee's parent or guardian.
- (f) The payment must not be less than the amount that would have been payable had the employee taken the leave at the time the payment is made.
- (g) An agreement must not result in the employee's remaining accrued entitlement to paid annual leave being less than 4 weeks.
- (h) The maximum amount of accrued paid annual leave that may be cashed out in any period of 12 months is 2 weeks.
- (i) The employer must keep a copy of any agreement under clause 31.6 as an employee record.

Note 1: Under section 344 of the Fair Work Act, an employer must not exert undue influence or undue pressure on an employee to make, or not make, an agreement under clause 31.6.

Note 2: Under section 345(1) of the Fair Work Act, a person must not knowingly or recklessly make a false or misleading representation about the workplace rights of another person under clause 31.6.

Note 3: An example of the type of agreement required by clause 31.6 is set out at Schedule K. There is no requirement to use the form of agreement set out at Schedule K.

31.7 Excessive leave accruals: general provision

[31.6 inserted by [PR583077](#) ppc 29Jul16; 31.6 renumbered as 31.7 by [PR779153](#) ppc 01Jan25]

Note: Clauses 31.7 to 31.9 contain provisions, additional to the National Employment Standards, about the taking of paid annual leave as a way of dealing

with the accrual of excessive paid annual leave. See Part 2.2, Division 6 of the Fair Work Act.

- (a) An employee has an **excessive leave accrual** if the employee has accrued more than 8 weeks' paid annual leave (or 10 weeks' paid annual leave for a shiftworker, as defined by clause 31.2).
- (b) If an employee has an excessive leave accrual, the employer or the employee may seek to confer with the other and genuinely try to reach agreement on how to reduce or eliminate the excessive leave accrual.
- (c) Clause 31.8 sets out how an employer may direct an employee who has an excessive leave accrual to take paid annual leave.
- (d) Clause 31.9 sets out how an employee who has an excessive leave accrual may require an employer to grant paid annual leave requested by the employee.

31.8 Excessive leave accruals: direction by employer that leave be taken

[31.7 inserted by [PR583077](#) ppc 29Jul16; 31.7 renumbered as 31.8 by [PR779153](#) ppc 01Jan25]

- (a) If an employer has genuinely tried to reach agreement with an employee under clause 31.7(b) but agreement is not reached (including because the employee refuses to confer), the employer may direct the employee in writing to take one or more periods of paid annual leave.
- (b) However, a direction by the employer under paragraph (a):
 - (i) is of no effect if it would result at any time in the employee's remaining accrued entitlement to paid annual leave being less than 6 weeks when any other paid annual leave arrangements (whether made under clause 31.7, 31.8 or 31.9 or otherwise agreed by the employer and employee) are taken into account; and
 - (ii) must not require the employee to take any period of paid annual leave of less than one week; and
 - (iii) must not require the employee to take a period of paid annual leave beginning less than 8 weeks, or more than 12 months, after the direction is given; and
 - (iv) must not be inconsistent with any leave arrangement agreed by the employer and employee.
- (c) The employee must take paid annual leave in accordance with a direction under paragraph (a) that is in effect.

- (d) An employee to whom a direction has been given under paragraph (a) may request to take a period of paid annual leave as if the direction had not been given.

Note 1: Paid annual leave arising from a request mentioned in paragraph (d) may result in the direction ceasing to have effect. See clause 31.8(b)(i).

Note 2: Under section 88(2) of the Fair Work Act, the employer must not unreasonably refuse to agree to a request by the employee to take paid annual leave.

31.9 Excessive leave accruals: request by employee for leave

[31.8 inserted by [PR583077](#); substituted by [PR583077](#) ppc 29Jul17; 31.8 renumbered as 31.9 by [PR779153](#) ppc 01Jan25]

- (a) If an employee has genuinely tried to reach agreement with an employer under clause 31.7(b) but agreement is not reached (including because the employer refuses to confer), the employee may give a written notice to the employer requesting to take one or more periods of paid annual leave.
- (b) However, an employee may only give a notice to the employer under paragraph (a) if:
 - (i) the employee has had an excessive leave accrual for more than 6 months at the time of giving the notice; and
 - (ii) the employee has not been given a direction under clause 31.8(a) that, when any other paid annual leave arrangements (whether made under clause 31.7, 31.8 or 31.9 or otherwise agreed by the employer and employee) are taken into account, would eliminate the employee's excessive leave accrual.
- (c) A notice given by an employee under paragraph (a) must not:
 - (i) if granted, result in the employee's remaining accrued entitlement to paid annual leave being at any time less than 6 weeks when any other paid annual leave arrangements (whether made under clause 31.7, 31.8 or 31.9 or otherwise agreed by the employer and employee) are taken into account; or
 - (ii) provide for the employee to take any period of paid annual leave of less than one week; or
 - (iii) provide for the employee to take a period of paid annual leave beginning less than 8 weeks, or more than 12 months, after the notice is given; or

- (iv) be inconsistent with any leave arrangement agreed by the employer and employee.
- (d) An employee is not entitled to request by a notice under paragraph (a) more than 4 weeks' paid annual leave (or 5 weeks' paid annual leave for a shiftworker, as defined by clause 31.2) in any period of 12 months.
- (e) The employer must grant paid annual leave requested by a notice under paragraph (a).

32. Personal/carer's leave and compassionate leave

[32 renumbered as 31 by [PR995399](#), 31 renumbered as 32 by [PR508061](#) ppc 01Jan10]

Personal/carer's leave and compassionate leave are provided for in the [NES](#).

32A. Parental leave and related entitlements

[32A inserted by [PR763307](#) ppc 01Aug23]

Parental leave and related entitlements are provided for in the [NES](#).

NOTE: Disputes about requests for extensions to unpaid parental leave may be dealt with under clause 9—Dispute resolution and/or under section 76B of the [Act](#).

33. Community service leave

[33 renumbered as 32 by [PR995399](#), 32 renumbered as 33 by [PR508061](#) ppc 01Jan10]

Community service leave is provided for in the [NES](#).

34. Public holidays

[34 renumbered as 33 by [PR995399](#), 33 renumbered as 34 by [PR508061](#); varied by [PR713525](#), [PR765711](#)]

34.1 Public holidays are provided for in the [NES](#). This clause contains additional provisions.

34.2 Payment for working on a public holiday

- (a) An employee required to work on a public holiday will be paid double time and a half of their ordinary rate of pay for all time worked.
- (b) Payments under this clause are instead of any additional rate for shift or weekend work which would otherwise be payable had the shift not been a public holiday.

[34.2(c) inserted by [PR713525](#) ppc 01Jul20]

- (c) A casual employee will be paid the casual loading in clause 10.4 in addition to the public holiday penalty rate in clause 34.2(a).

[34.2(d) inserted by [PR713525](#) ppc 01Jul20]

- (d) A casual employee will be paid 275% of the ordinary rate of pay for hours worked on public holidays (inclusive of the casual loading).

34.3 Substitution of public holidays by agreement

[34.3 inserted by [PR765711](#) ppc 11Sep23]

- (a) An employee may request to substitute another day for a day that would otherwise be a public holiday under the [NES](#). The requested day will be substituted if the employer agrees to the employee's request.
- (b) An employee may request to substitute another part day for a day that would otherwise be a part day public holiday under the [NES](#). The requested part day will be substituted if the employer agrees to the employee's request.

35. Ceremonial leave

[35 renumbered as 34 by [PR995399](#); varied by [PR500675](#) from 01Jan10; 34 renumbered as 35 by [PR508061](#) ppc 01Jan10]

An employee who is legitimately required by indigenous tradition to be absent from work for Aboriginal or Torres Strait Islander ceremonial purposes will be entitled to up to 10 working days unpaid leave in any one year, with the approval of the employer.

36. Family and domestic violence leave

[36—Leave to deal with Family and Domestic Violence renamed and substituted by [PR740268](#) ppc 19Apr22;
36—Unpaid family and domestic violence leave renamed and substituted by [PR750543](#) ppc 15Mar23]

Family and domestic violence leave is provided for in the [NES](#).

NOTE 1: Information provided to employers concerning an employee's experience of family and domestic violence is sensitive and if mishandled can have adverse consequences for the employee. Employers are subject to confidentiality requirements regarding the handling of this information under section 106C of the [Act](#) and requirements as to what can be reported on payslips pursuant to regulations 3.47 and 3.48 of the *Fair Work Regulations 2009*.

NOTE 2: Depending upon the circumstances, evidence that would satisfy a reasonable person of the employee's need to take family and domestic violence leave may include a document

issued by the police service, a court or family violence support service, or a statutory declaration.

Schedule A—Transitional provisions

[Sched A varied by [PR999525](#), [PR503704](#), [PR508395](#), [PR519357](#)]

A.1 General

A.1.1 The provisions of this schedule deal with minimum obligations only.

A.1.2 The provisions of this schedule are to be applied:

- (a) when there is a difference, in money or percentage terms, between a provision in a relevant transitional minimum wage instrument (including the transitional default casual loading) or award-based transitional instrument on the one hand and an equivalent provision in this award on the other;
- (b) when a loading or penalty in a relevant transitional minimum wage instrument or award-based transitional instrument has no equivalent provision in this award;
- (c) when a loading or penalty in this award has no equivalent provision in a relevant transitional minimum wage instrument or award-based transitional instrument; or
- (d) when there is a loading or penalty in this award but there is no relevant transitional minimum wage instrument or award-based transitional instrument.

[A.1.3 inserted by [PR503704](#) ppc 01Jan11]

A.1.3 To avoid doubt, this schedule operates subject to the transitional pay equity orders referred to in clauses 15 and 17 of this award.

A.2 Minimum wages – existing minimum wage lower

A.2.1 The following transitional arrangements apply to an employer which, immediately prior to 1 January 2010:

- (a) was obliged,
- (b) but for the operation of an agreement-based transitional instrument or an enterprise agreement would have been obliged, or
- (c) if it had been an employer in the industry or of the occupations covered by this award would have been obliged

by a transitional minimum wage instrument and/or an award-based transitional instrument to pay a minimum wage lower than that in this award for any classification of employee.

A.2.2 In this clause minimum wage includes:

- (a) a minimum wage for a junior employee, an employee to whom training arrangements apply and an employee with a disability;
- (b) a piecework rate; and
- (c) any applicable industry allowance.

[A.2.3 varied by [PR508395](#) ppc 11Apr11; [PR519357](#) ppc 19Jan12]

A.2.3 Prior to the first full pay period on or after 1 February 2012 the employer must pay no less than the minimum wage in the relevant transitional minimum wage instrument and/or award-based transitional instrument for the classification concerned to employees classified in the Family Day Care and Home Care classification streams in this award.

[A.2.4 substituted by [PR519357](#) ppc 19Jan12]

A.2.4 The difference between the minimum wage for the classification in the Family Day Care and Home Care classification streams in this award and the minimum wage in clause A.2.3 is referred to as the transitional amount.

[A.2.5 varied by [PR508395](#) ppc 11Apr11; [PR519357](#) ppc 19Jan12]

A.2.5 From the following dates the employer must pay no less than the minimum wage for the classification in this award minus the specified proportion of the transitional amount to employees classified in the Family Day Care and Home Care classification streams in this award:

First full pay period on or after

1 February 2012	60%
1 July 2012	40%
1 July 2013	20%

A.2.6 The employer must apply any increase in minimum wages in this award resulting from an annual wage review.

[A.2.7 varied by [PR519357](#) ppc 19Jan12]

A.2.7 Clauses A.2.4 and A.2.5 cease to operate from the beginning of the first full pay period on or after 1 July 2014.

[A.2.8 inserted by [PR519357](#) ppc 19Jan12]

- A.2.8** Prior to the first full pay period on or after 1 July 2012, the employer must pay no less than the minimum wage in the relevant transitional minimum wage instrument and/or award-based transitional instrument for the classification concerned to employees classified in the Social and Community Services and Crisis Accommodation classification streams in this award.

[A.2.9 inserted by [PR519357](#) ppc 19Jan12]

- A.2.9** Clause A.2.8 ceases to operate from the beginning of the first full pay period on or after 1 July 2012.

A.3 Minimum wages – existing minimum wage higher

- A.3.1** The following transitional arrangements apply to an employer which, immediately prior to 1 January 2010:

- (a) was obliged,
- (b) but for the operation of an agreement-based transitional instrument or an enterprise agreement would have been obliged, or
- (c) if it had been an employer in the industry or of the occupations covered by this award would have been obliged

by a transitional minimum wage instrument and/or an award-based transitional instrument to pay a minimum wage higher than that in this award for any classification of employee.

- A.3.2** In this clause minimum wage includes:

- (a) a minimum wage for a junior employee, an employee to whom training arrangements apply and an employee with a disability;
- (b) a piecework rate; and
- (c) any applicable industry allowance.

[A.3.3 varied by [PR508395](#) ppc 11Apr11; [PR519357](#) ppc 19Jan12]

- A.3.3** Prior to the first full pay period on or after 1 February 2012 the employer must pay no less than the minimum wage in the relevant transitional minimum wage instrument and/or award-based transitional instrument for the classification concerned to employees classified in the Family Day Care and Home Care classification streams in this award.

[A.3.4 substituted by [PR519357](#) ppc 19Jan12]

- A.3.4** The difference between the minimum wage for the classification in the Family Day Care and Home Care classification streams in this award and the minimum wage in clause A.3.3 is referred to as the transitional amount.

[A.3.5 varied by [PR508395](#) ppc 11Apr11; [PR519357](#) ppc 19Jan12]

- A.3.5** From the following dates the employer must pay no less than the minimum wage for the classification in this award plus the specified proportion of the transitional amount to employees classified in the Family Day Care and Home Care classification streams in this award:

First full pay period on or after

1 February 2012	60%
1 July 2012	40%
1 July 2013	20%

- A.3.6** The employer must apply any increase in minimum wages in this award resulting from an annual wage review. If the transitional amount is equal to or less than any increase in minimum wages resulting from the 2010 annual wage review the transitional amount is to be set off against the increase and the other provisions of this clause will not apply.

[A.3.7 varied by [PR519357](#) ppc 19Jan12]

- A.3.7** Clauses A.3.4 to A.3.6 cease to operate from the beginning of the first full pay period on or after 1 July 2014.

[A.3.8 inserted by [PR519357](#) ppc 19Jan12]

- A.3.8** Prior to the first full pay period on or after 1 July 2012, the employer must pay no less than the minimum wage in the relevant transitional minimum wage instrument and/or award-based transitional instrument for the classification concerned to employees classified in the Social and Community Services and Crisis Accommodation classification streams in this award.

[A.3.9 inserted by [PR519357](#) ppc 19Jan12]

- A.3.9** From the first full pay period on or after 1 July 2012, the employer must pay an employee who is classified in either the Social and Community Services or Crisis Accommodation classification streams in this award no less than either:

- (a) the minimum wage for the relevant classification in this award; or
 - (b) the minimum wage in the relevant transitional minimum wage instrument and/or award-based transitional instrument for the classification concerned
- whichever is higher.

[A.3.10 inserted by [PR519357](#) ppc 19Jan12]

A.3.10 The employer must apply any increase in minimum wages in this award resulting from an annual wage review to the amounts in clause A.3.9.

[A.3.11 inserted by [PR519357](#) ppc 19Jan12]

A.3.11 Clause A.3.9 ceases to operate from the beginning of the first full pay period on or after 1 July 2014.

A.4 Loadings and penalty rates

For the purposes of this schedule loading or penalty means a:

- casual or part-time loading;
- Saturday, Sunday, public holiday, evening or other penalty;
- shift allowance/penalty.

A.5 Loadings and penalty rates – existing loading or penalty rate lower

A.5.1 The following transitional arrangements apply to an employer which, immediately prior to 1 January 2010:

- (a) was obliged,
- (b) but for the operation of an agreement-based transitional instrument or an enterprise agreement would have been obliged, or
- (c) if it had been an employer in the industry or of the occupations covered by this award would have been obliged

by the terms of a transitional minimum wage instrument or an award-based transitional instrument to pay a particular loading or penalty at a lower rate than the equivalent loading or penalty in this award for any classification of employee.

[A.5.2 varied by [PR999525](#), [PR508395](#) ppc 11Apr11; [PR519357](#) ppc 19Jan12]

A.5.2 Prior to the first full pay period on or after 1 February 2012 the employer must pay no less than the loading or penalty in the relevant transitional minimum wage instrument or award-based transitional instrument for the classification concerned

to employees classified in the Family Day Care and Home Care classification streams in this award.

- A.5.3** The difference between the loading or penalty in this award and the rate in clause A.5.2 is referred to as the transitional percentage.

[A.5.4 varied by [PR999525](#), [PR508395](#) ppc 11Apr11; [PR519357](#) ppc 19Jan12]

- A.5.4** From the following dates the employer must pay no less than the loading or penalty in this award minus the specified proportion of the transitional percentage to employees classified in the Family Day Care and Home Care classification streams in this award:

First full pay period on or after

1 February 2012	60%
1 July 2012	40%
1 July 2013	20%

[A.5.5 varied by [PR519357](#) ppc 19Jan12]

- A.5.5** Clause A.5.4 ceases to operate from the beginning of the first full pay period on or after 1 July 2014.

[A.5.6 inserted by [PR519357](#) ppc 19Jan12]

- A.5.6** Prior to the first full pay period on or after 1 July 2012, the employer must pay no less than the loading or penalty in the relevant transitional minimum wage instrument or award-based transitional instrument for the classification concerned to employees classified in the Social and Community Services and Crisis Accommodation classification streams in this award.

[A.5.7 inserted by [PR519357](#) ppc 19Jan12]

- A.5.7** The difference between the loading or penalty in this award and the rate in clause A.5.6 is referred to as the transitional percentage.

[A.5.8 inserted by [PR519357](#) ppc 19Jan12]

- A.5.8** From the following dates the employer must pay no less than the loading or penalty in this award minus the specified proportion of the transitional percentage to employees classified in the Social and Community Services and Crisis Accommodation classification streams in this award:

First full pay period on or after

1 July 2012	40%
1 July 2013	20%

[A.5.9 inserted by [PR519357](#) ppc 19Jan12]

A.5.9 Clauses A.5.6 to A.5.8 cease to operate from the beginning of the first full pay period on or after 1 July 2014.

A.6 Loadings and penalty rates – existing loading or penalty rate higher

A.6.1 The following transitional arrangements apply to an employer which, immediately prior to 1 January 2010:

- (a) was obliged,
- (b) but for the operation of an agreement-based transitional instrument or an enterprise agreement would have been obliged, or
- (c) if it had been an employer in the industry or of the occupations covered by this award would have been obliged

by the terms of a transitional minimum wage instrument or an award-based transitional instrument to pay a particular loading or penalty at a higher rate than the equivalent loading or penalty in this award, or to pay a particular loading or penalty and there is no equivalent loading or penalty in this award, for any classification of employee.

[A.6.2 varied by [PR999525](#), [PR508395](#) ppc 11Apr11; [PR519357](#) ppc 19Jan12]

A.6.2 Prior to the first full pay period on or after 1 February 2012 the employer must pay no less than the loading or penalty in the relevant transitional minimum wage instrument or award-based transitional instrument to employees classified in the Family Day Care and Home Care classification streams in this award.

A.6.3 The difference between the loading or penalty in this award and the rate in clause A.6.2 is referred to as the transitional percentage. Where there is no equivalent loading or penalty in this award, the transitional percentage is the rate in A.6.2.

[A.6.4 varied by [PR999525](#), [PR508395](#) ppc 11Apr11; [PR519357](#) ppc 19Jan12]

- A.6.4** From the following dates the employer must pay no less than the loading or penalty in this award plus the specified proportion of the transitional percentage to employees classified in the Family Day Care and Home Care classification streams in this award:

First full pay period on or after

1 February 2012	60%
1 July 2012	40%
1 July 2013	20%

[A.6.5 varied by [PR519357](#) ppc 19Jan12]

- A.6.5** Clauses A.6.2 to A.6.4 cease to operate from the beginning of the first full pay period on or after 1 July 2014.

[A.6.6 inserted by [PR519357](#) ppc 19Jan12]

- A.6.6** Prior to the first full pay period on or after 1 July 2012, the employer must pay no less than the loading or penalty in the relevant transitional minimum wage instrument or award-based transitional instrument for the classification concerned to employees classified in the Social and Community Services and Crisis Accommodation classification streams in this award.

[A.6.7 inserted by [PR519357](#) ppc 19Jan12]

- A.6.7** The difference between the loading or penalty in this award and the rate in clause A.6.6 is referred to as the transitional percentage.

[A.6.8 inserted by [PR519357](#) ppc 19Jan12]

- A.6.8** From the following dates the employer must pay no less than the loading or penalty in this award plus the specified proportion of the transitional percentage to employees classified in the Social and Community Services and Crisis Accommodation classification streams in this award:

First full pay period on or after

1 July 2012	40%
1 July 2013	20%

[A.6.9 inserted by [PR519357](#) ppc 19Jan12]

A.6.9 Clauses A.6.6 to A.6.8 cease to operate from the beginning of the first full pay period on or after 1 July 2014.

A.7 Loadings and penalty rates – no existing loading or penalty rate

A.7.1 The following transitional arrangements apply to an employer not covered by clause A.5 or A.6 in relation to a particular loading or penalty in this award.

[A.7.2 varied by [PR999525](#), [PR508395](#) ppc 11Apr11; [PR519357](#) ppc 19Jan12]

A.7.2 Prior to the first full pay period on or after 1 February 2012 the employer need not pay the loading or penalty in this award to employees classified in the Family Day Care and Home Care classification streams in this award.

[A.7.3 varied by [PR999525](#), [PR508395](#) ppc 11Apr11; [PR519357](#) ppc 19Jan12]

A.7.3 From the following dates the employer must pay no less than the following percentage of the loading or penalty in this award to employees classified in the Family Day Care and Home Care classification streams in this award:

First full pay period on or after

1 February 2012	40%
1 July 2012	60%
1 July 2013	80%

[A.7.4 varied by [PR519357](#) ppc 19Jan12]

A.7.4 Clauses A.7.2 and A.7.3 cease to operate from the beginning of the first full pay period on or after 1 July 2014.

[A.7.5 inserted by [PR519357](#) ppc 19Jan12]

A.7.5 Prior to the first full pay period on or after 1 July 2012, the employer need not pay the loading or penalty in this award to employees classified in the Social and Community Services and Crisis Accommodation classification streams in this award.

[A.7.6 inserted by [PR519357](#) ppc 19Jan12]

A.7.6 From the following dates the employer must pay no less than the following percentage of the loading or penalty in this award to employees classified in the Social and Community Service and Crisis Accommodation classification streams in this award:

First full pay period on or after

1 July 2012 60%

1 July 2013 80%

[A.7.7 inserted by [PR519357](#) ppc 19Jan12]

A.7.7 Clauses A.7.5 and A.7.6 cease to operate from the beginning of the first full pay period on or after 1 July 2014.

A.8 Former Division 2B employers

[A.8 inserted by [PR503704](#) ppc 01Jan11]

A.8.1 This clause applies to an employer which, immediately prior to 1 January 2011, was covered by a Division 2B State award.

A.8.2 All of the terms of a Division 2B State award applying to a Division 2B employer are continued in effect until the end of the full pay period commencing before 1 February 2011.

A.8.3 Subject to this clause, from the first full pay period commencing on or after 1 February 2011 a Division 2B employer must pay no less than the minimum wages, loadings and penalty rates which it would be required to pay under this Schedule if it had been a national system employer immediately prior to 1 January 2010.

A.8.4 Despite clause A.8.3, where a minimum wage, loading or penalty rate in a Division 2B State award immediately prior to 1 February 2011 was lower than the corresponding minimum wage, loading or penalty rate in this award, nothing in this Schedule requires a Division 2B employer to pay more than the minimum wage, loading or penalty rate in this award.

A.8.5 Despite clause A.8.3, where a minimum wage, loading or penalty rate in a Division 2B State award immediately prior to 1 February 2011 was higher than the corresponding minimum wage, loading or penalty rate in this award, nothing in this Schedule requires a Division 2B employer to pay less than the minimum wage, loading or penalty rate in this award.

A.8.6 In relation to a Division 2B employer this Schedule commences to operate from the beginning of the first full pay period on or after 1 January 2011 and ceases to operate from the beginning of the first full pay period on or after 1 July 2014.

Schedule B—Classification Definitions—Social and Community Services Employees

[Varied by [PR995399](#), [PR995626](#), [PR526106](#); [PR779588](#)]

B.1 Social and community services employee level 1

B.1.1 Characteristics of the level

- (a) A person employed as a Social and community services employee level 1 works under close direction and undertakes routine activities which require the practical application of basic skills and techniques. They may include the initial recruit who may have limited relevant experience.
- (b) General features of work in this level consist of performing clearly defined activities with outcomes being readily attainable. Employees' duties at this level will be closely monitored with instruction and assistance being readily available.
- (c) Freedom to act is limited by standards and procedures. However, with experience, employees at this level may have sufficient freedom to exercise judgment in the planning of their own work within those confines.
- (d) Positions at this level will involve employees in extensive on-the-job training including familiarisation with the goals and objectives of the workplace.

[B.1.1(e) varied by [PR995399](#) ppc26Mar10]

- (e) Employees will be responsible for the time management of their work and required to use basic numeracy, written and verbal communication skills, and where relevant, skills required to assist with personal care and lifestyle support.
- (f) Supervision of other staff or volunteers is not a feature at this level. However, an experienced employee may have technical oversight of a minor work activity.
- (g) At this level, employers are expected to offer substantial internal and/or external training.

B.1.2 Responsibilities

A position at this level may include some of the following inputs or those of a similar value:

- (a) undertake routine activities of a clerical and/or support nature;

- (b) undertake straightforward operation of keyboard equipment including data input and word processing at a basic level;
- (c) provide routine information including general reception and telephonist duties;
- (d) provide general stenographic duties;
- (e) apply established practices and procedures;
- (f) undertake routine office duties involving filing, recording, checking and batching of accounts, invoices, orders, stores requisitions and maintenance of an existing records system;

[B.1.2(g) inserted by [PR995399](#) ppc 26Mar10; varied by [PR779588](#) from 25Sep24]

- (g) resident contact and interaction including attending to their personal care or undertaking generic domestic duties under direct or routine supervision and either individually or as part of a team as part of the delivery of social, community or disability services;

[B.1.2(h) inserted by [PR995399](#) ppc 26Mar10; varied by [PR779588](#) from 25Sep24]

- (h) preparation of the full range of domestic duties including cleaning and food service, assistance to residents in carrying out personal care tasks under general supervision either individually or as part of a team as part of the delivery of social, community or disability services.

The minimum rate of pay for employees engaged in responsibilities which are prescribed by B.1.2(h) is pay point 2.

B.1.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

- (a) **Skills, knowledge, experience, qualifications and/or training**
 - (i) developing knowledge of the workplace function and operation;
 - (ii) basic knowledge of administrative practices and procedures relevant to the workplace;
 - (iii) a developing knowledge of work practices and policies of the relevant work area;
 - (iv) basic numeracy, written and verbal communication skills relevant to the work area;

- (v) at this level employers are required to offer substantial on-the-job training.

(b) Organisational relationships

Work under direct supervision.

(c) Extent of authority

- (i) Work outcomes are clearly monitored.
- (ii) Freedom to act is limited by standards and procedures.
- (iii) Solutions to problems are found in established procedures and instructions with assistance readily available.
- (iv) Project completion according to instructions and established procedures.
- (v) No scope for interpretation.

(d) Progression

[B.1.3(d) inserted by [PR995399](#) ppc 26Mar10]

An employee primarily engaged in responsibilities which are prescribed by B.1.2(g) will, if full-time, progress to pay point 2 on completion of 12 months' industry experience, or if part-time, on completion of 1976 hours of industry experience. **Industry experience** means 12 months of relevant experience gained over the previous 3 years.

B.2 Social and community services employee level 2

B.2.1 Characteristics of the level

- (a) A person employed as a Social and community services employee level 2 will work under general guidance within clearly defined guidelines and undertake a range of activities requiring the application of acquired skills and knowledge.
- (b) General features at this level consist of performing functions which are defined by established routines, methods, standards and procedures with limited scope to exercise initiative in applying work practices and procedures. Assistance will be readily available. Employees may be responsible for a minor function and/or may contribute specific knowledge and/or specific skills to the work of the organisation. In addition, employees may be required to assist senior workers with specific projects.

- (c) Employees will be expected to have an understanding of work procedures relevant to their work area and may provide assistance to lower classified employees or volunteers concerning established procedures to meet the objectives of a minor function.
- (d) Employees will be responsible for managing time, planning and organising their own work and may be required to oversee and/or guide the work of a limited number of lower classified employees or volunteers. Employees at this level could be required to resolve minor work procedural issues in the relevant work area within established constraints.

[B.2.1(e) varied by [PR995399](#) ppc 26Mar10]

- (e) Employees who have completed an appropriate certificate and are required to undertake work related to that certificate will be appointed to this level. Where the appropriate certificate is a level 4 certificate the minimum rate of pay will be pay point 2.
- (f) Employees who have completed an appropriate diploma and are required to undertake work related to the diploma will commence at the second pay point of this level and will advance after 12 full-time equivalent months' satisfactory service.

B.2.2 Responsibilities

A position at this level may include some of the following:

- (a) undertake a range of activities requiring the application of established work procedures and may exercise limited initiative and/or judgment within clearly established procedures and/or guidelines;
- (b) achieve outcomes which are clearly defined;
- (c) respond to enquiries;
- (d) assist senior employees with special projects;
- (e) prepare cash payment summaries, banking reports and bank statements, post journals to ledger etc. and apply purchasing and inventory control requirements;
- (f) perform elementary tasks within a community service program requiring knowledge of established work practices and procedures relevant to the work area;

- (g) provide secretarial support requiring the exercise of sound judgment, initiative, confidentiality and sensitivity in the performance of work;
- (h) perform tasks of a sensitive nature including the provision of more than routine information, the receiving and accounting for moneys and assistance to clients;
- (i) assist in calculating and maintaining wage and salary records;
- (j) assist with administrative functions;

[B.2.2(k) inserted by [PR995399](#) ppc 26Mar10]

- (k) implementing client skills and activities programmes under limited supervision either individually or as part of a team as part of the delivery of disability services;

[B.2.2(l) inserted by [PR995399](#) ppc 26Mar10; varied by [PR779588](#) from 25Sep24]

- (l) supervising or providing a wide range of personal care services to residents under limited supervision either individually or as part of a team as part of the delivery of social, community or disability services;

[B.2.2(m) inserted by [PR995399](#) ppc 26Mar10; varied by [PR779588](#) from 25Sep24]

- (m) assisting in the development or implementation of resident care plans or the planning, cooking or preparation of the full range of meals under limited supervision either individually or as part of a team as part of the delivery of social, community or disability services;

[B.2.2(n) inserted by [PR995399](#) ppc 26Mar10]

- (n) possessing an appropriate qualification (as identified by the employer) at the level of certificate 4 or above and supervising the work of others (including work allocation, rostering and providing guidance) as part of the delivery of disability services as described above or in subclause B.1.2.

B.2.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

- (a) **Skills, knowledge, experience, qualification and/or training**
 - (i) basic skills in oral and written communication with clients and other members of the public;
 - (ii) knowledge of established work practices and procedures relevant to the workplace;

- (iii) knowledge of policies relating to the workplace;
- (iv) application of techniques relevant to the workplace;
- (v) developing knowledge of statutory requirements relevant to the workplace;
- (vi) understanding of basic computing concepts.

(b) Prerequisites

- (i) an appropriate certificate relevant to the work required to be performed;
- (ii) will have attained previous experience in a relevant industry, service or an equivalent level of expertise and experience to undertake the range of activities required;
- (iii) appropriate on-the-job training and relevant experience; or
- (iv) entry point for a diploma without experience.

(c) Organisational relationships

[B.2.3(c)(i) varied by [PR995399](#) ppc 26Mar10]

- (i) work under regular supervision except where this level of supervision is not required by the nature of responsibilities under B.2.2 being undertaken;
- (ii) provide limited guidance to a limited number of lower classified employees.

(d) Extent of authority

- (i) work outcomes are monitored;
- (ii) have freedom to act within established guidelines;
- (iii) solutions to problems may require the exercise of limited judgment, with guidance to be found in procedures, precedents and guidelines. Assistance will be available when problems occur.

B.3 Social and community services employee level 3

B.3.1 Characteristics of this level

- (a)** A person employed as a Social and community services employee level 3 will work under general direction in the application of procedures, methods and guidelines which are well established.
- (b)** General features of this level involve solving problems of limited difficulty using knowledge, judgment and work organisational skills acquired through qualifications and/or previous work experience. Assistance is available from senior employees. Employees may receive instruction on the broader aspects of the work. In addition, employees may provide assistance to lower classified employees.
- (c)** Positions at this level allow employees the scope for exercising initiative in the application of established work procedures and may require the employee to establish goals/objectives and outcomes for their own particular work program or project.

[B.3.1(d) varied by [PR995399](#) ppc 26Mar10]

- (d)** At this level, employees may be required to supervise lower classified staff or volunteers in their day-to-day work. Employees with supervisory responsibilities may undertake some complex operational work and may undertake planning and co-ordination of activities within a clearly defined area of the organisation including managing the day-to-day operations of a group of residential facility for persons with a disability.
- (e)** Employees will be responsible for managing and planning their own work and that of subordinate staff or volunteers and may be required to deal with formal disciplinary issues within the work area.
- (f)** Those with supervisory responsibilities should have a basic knowledge of the principles of human resource management and be able to assist subordinate staff or volunteers with on-the-job training. They may be required to supervise more than one component of the work program of the organisation.

[B.3.1(g) varied by [PR526106](#) ppc 01Feb12]

- (g)** Graduates with a three year degree that undertake work related to the responsibilities under this level will commence at no lower than pay point 3. Graduates with a four year degree that undertake work related to the responsibilities under this level will commence at no lower than pay point 4.

B.3.2 Responsibilities

To contribute to the operational objectives of the work area, a position at this level may include some of the following:

- (a)** undertake responsibility for various activities in a specialised area;
- (b)** exercise responsibility for a function within the organisation;
- (c)** allow the scope for exercising initiative in the application of established work procedures;
- (d)** assist in a range of functions and/or contribute to interpretation of matters for which there are no clearly established practices and procedures although such activity would not be the sole responsibility of such an employee within the workplace;
- (e)** provide secretarial and/or administrative support requiring a high degree of judgment, initiative, confidentiality and sensitivity in the performance of work;
- (f)** assist with or provide a range of records management services, however the responsibility for the records management service would not rest with the employee;
- (g)** proficient in the operation of the computer to enable modification and/or correction of computer software systems or packages and/or identification problems. This level could include systems administrators in small to medium sized organisations whose responsibility includes the security/integrity of the system;
- (h)** apply computing programming knowledge and skills in systems development, maintenance and implementation under direction of a senior employee;
- (i)** supervise a limited number of lower classified employees or volunteers;
- (j)** allow the scope for exercising initiative in the application of established work procedures;
- (k)** deliver single stream training programs;
- (l)** co-ordinate elementary service programs;
- (m)** provide assistance to senior employees;
- (n)** where prime responsibility lies in a specialised field, employees at this level would undertake at least some of the following:

- (i) undertake some minor phase of a broad or more complex assignment;
- (ii) perform duties of a specialised nature;
- (iii) provide a range of information services;
- (iv) plan and co-ordinate elementary community-based projects or programs;
- (v) perform moderately complex functions including social planning, demographic analysis, survey design and analysis.

[B.3.2(o) inserted by [PR995399](#) ppc 26Mar10]

- (o) in the delivery of disability services as described in subclauses B.1.2 or B.2.2, taking overall responsibility for the personal care of residents; training, co-ordinating and supervising other employees and scheduling work programmes; and assisting in liaison and co-ordination with other services and programmes.

B.3.3 Requirements of the job

Some or all of the following are needed to perform work at this level:

(a) Skills, knowledge, experience, qualifications and/or training

- (i) thorough knowledge of work activities performed within the workplace;
- (ii) sound knowledge of procedural/operational methods of the workplace;
- (iii) may utilise limited professional or specialised knowledge;
- (iv) working knowledge of statutory requirements relevant to the workplace;
- (v) ability to apply computing concepts.

(b) Prerequisites

[B.3.3(b)(i) varied by [PR526106](#) ppc 01Feb12]

- (i) entry level for graduates with a relevant three year degree that undertake work related to the responsibilities under this level—pay point 3;

[B.3.3(b)(ii) varied by [PR526106](#) ppc 01Feb12]

- (ii) entry level for graduates with a relevant four year degree that undertake work related to the responsibilities under this level—pay point 4;
- (iii) associate diploma with relevant experience; or

- (iv) relevant certificate with relevant experience, or experience attained through previous appointments, services and/or study of an equivalent level of expertise and/or experience to undertake the range of activities required.

(c) Organisational relationships

- (i) graduates work under direct supervision;

[B.3.3(c)(ii) substituted by [PR995399](#), varied by [PR995626](#) ppc 26Mar10]

- (ii) works under general supervision except where this level of supervision is not required by the nature of the responsibilities under B.3.2 being undertaken;

- (iii) operate as member of a team;

- (iv) supervision of other employees.

(d) Extent of authority

- (i) graduates receive instructions on the broader aspects of the work;

- (ii) freedom to act within defined established practices;

- (iii) problems can usually be solved by reference to procedures, documented methods and instructions. Assistance is available when problems occur.

B.4 Social and community services employee level 4

B.4.1 Characteristics of this level

- (a) A person employed as a Social and community services employee level 4 will work under general direction in functions that require the application of skills and knowledge appropriate to the work. Generally guidelines and work procedures are established.
- (b) General features at this level require the application of knowledge and skills which are gained through qualifications and/or previous experience in a discipline. Employees will be expected to contribute knowledge in establishing procedures in the appropriate work-related field. In addition, employees at this level may be required to supervise various functions within a work area or activities of a complex nature.
- (c) Positions may involve a range of work functions which could contain a substantial component of supervision. Employees may also be required to provide specialist expertise or advice in their relevant discipline.

- (d) Work at this level requires a sound knowledge of program, activity, operational policy or service aspects of the work performed with a function or a number of work areas.
- (e) Employees require skills in managing time, setting priorities, planning and organising their own work and that of lower classified staff and/or volunteers where supervision is a component of the position, to achieve specific objectives.
- (f) Employees will be expected to set outcomes and further develop work methods where general work procedures are not defined.

B.4.2 Responsibilities

To contribute to the operational objectives of the workplace, a position at this level may include some of the following:

- (a) undertake activities which may require the employee to exercise judgment and/or contribute critical knowledge and skills where procedures are not clearly defined;
- (b) perform duties of a specialised nature requiring the development of expertise over time or previous knowledge;
- (c) identification of specific or desired performance outcomes;
- (d) contribute to interpretation and administration of areas of work for which there are no clearly established procedures;
- (e) expected to set outcomes and further develop work methods where general work procedures are not defined and could exercise judgment and contribute critical knowledge and skills where procedures are not clearly defined;
- (f) although still under general direction, there is greater scope to contribute to the development of work methods and the setting of outcomes. However, these must be within the clear objectives of the organisation and within budgetary constraints;
- (g) provide administrative support of a complex nature to senior employees;
- (h) exercise responsibility for various functions within a work area;
- (i) provide assistance on grant applications including basic research or collection of data;

- (j) undertake a wide range of activities associated with program activity or service delivery;
- (k) develop, control and administer a records management service for the receipt, custody, control, preservation and retrieval of records and related material;
- (l) undertake computer operations requiring technical expertise and experience and may exercise initiative and judgment in the application of established procedures and practices;
- (m) apply computer programming knowledge and skills in systems development, maintenance and implementation;
- (n) provide a reference and research information service and technical service including the facility to understand and develop technologically based systems;
- (o) where the prime responsibility lies in a specialised field, employees at this level would undertake at least some of the following:
 - (i) liaise with other professionals at a technical/professional level;
 - (ii) discuss techniques, procedures and/or results with clients on straight forward matters;
 - (iii) lead a team within a specialised project;
 - (iv) provide a reference, research and/or technical information service;
 - (v) carry out a variety of activities in the organisation requiring initiative and judgment in the selection and application of established principles, techniques and methods;
 - (vi) perform a range of planning functions which may require exercising knowledge of statutory and legal requirements;
 - (vii) assist senior employees with the planning and co-ordination of a community program of a complex nature.

B.4.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

- (a) **Skills, knowledge, experience, qualifications and/or training**
 - (i) knowledge of statutory requirements relevant to work;
 - (ii) knowledge of organisational programs, policies and activities;

- (iii) sound discipline knowledge gained through experience, training or education;
- (iv) knowledge of the role of the organisation and its structure and service;
- (v) specialists require an understanding of the underlying principles in the discipline.

(b) Prerequisites

- (i) relevant four year degree with one years relevant experience;
- (ii) three year degree with two years of relevant experience;
- (iii) associate diploma with relevant experience;
- (iv) lesser formal qualifications with substantial years of relevant experience;
or
- (v) attained through previous appointments, service and/or study, an equivalent level of expertise and experience to undertake a range of activities,

(c) Employees undertaking specialised services will be promoted to this level once they have had the appropriate experience and undertake work related to the responsibilities under this level.

(d) Employees working as sole employees will commence at this level.

(e) Organisational relationships

- (i) works under general direction;
- (ii) supervises other staff and/or volunteers or works in a specialised field.

(f) Extent of authority

- (i) required to set outcomes within defined constraints;
- (ii) provides specialist technical advice;
- (iii) freedom to act governed by clear objectives and/or budget constraints which may involve the contribution of knowledge in establishing procedures within the clear objectives and/or budget constraints where there are no defined established practices;

- (iv) solutions to problems generally found in precedents, guidelines or instructions;
- (v) assistance usually available.

B.5 Social and community services employee level 5

B.5.1 Characteristics of the level

- (a) A person employed as a Social and community services employee level 5 will work under general direction from senior employees. Employees undertake a range of functions requiring the application of a high level of knowledge and skills to achieve results in line with the organisation's goals.
- (b) Employees adhere to established work practices. However, they may be required to exercise initiative and judgment where practices and direction are not clearly defined.
- (c) General features at this level indicate involvement in establishing organisation programs and procedures. Positions will include a range of work functions and may involve supervision. Work may span more than one discipline. In addition, employees at this level may be required to assist in the preparation of, or prepare the organisation's budget. Employees at this level will be required to provide expert advice to employees classified at a lower level and volunteers.
- (d) Positions at this level demand the application of knowledge which is gained through qualifications and/or previous experience. In addition, employees will be required to set priorities and monitor work flows in their area of responsibility which may include establishing work programs in small organisations.
- (e) Employees are required to set priorities, plan and organise their own work and that of lower classified staff and/or volunteers and establish the most appropriate operational methods for the organisation. In addition, interpersonal skills are required to gain the co-operation of clients and staff.
- (f) Employees responsible for projects and/or functions will be required to establish outcomes to achieve organisation goals. Specialists may be required to provide multi-disciplinary advice.

B.5.2 Responsibilities

To contribute to the operational objectives of the work area, a position at this level may include some of the following:

- (a)** responsibility for a range of functions within the organisation requiring a high level of knowledge and skills;
- (b)** undertake responsibility for a moderately complex project, including planning, co-ordination, implementation and administration;
- (c)** undertake a minor phase of a broader or more complex professional assignment;
- (d)** assist with the preparation of or prepare organisation or program budgets in liaison with management;
- (e)** set priorities and monitor work flow in the areas of responsibility;
- (f)** provide expert advice to employees classified at lower levels and/or volunteers;
- (g)** exercise judgment and initiative where procedures are not clearly defined;
- (h)** understanding of all areas of computer operation to enable the provision of advice and assistance when non-standard procedures/processes are required;
- (i)** monitor and interpret legislation, regulations and other agreements relating to occupational health and safety, workers compensation and rehabilitation;
- (j)** undertake analysis/design for the development and maintenance of projects and/or undertake programming in specialist areas. May exercise responsibility for a specialised area of computing operation
- (k)** undertake publicity assignments within the framework of the organisation's publicity and promotions program. Such assignments would be of limited scope and complexity but would involve the co-ordination of facets of the total program including media liaison, design and layout of publications/displays and editing;
- (l)** operate as a specialist employee in the relevant discipline where decisions made and taken rest with the employee with no reference to a senior employee;
- (m)** undertake duties that require knowledge of procedures, guidelines and/or statutory requirements relevant to the organisation;
- (n)** plan, co-ordinate, implement and administer the activities and policies including preparation of budget;

- (o) develop, plan and supervise the implementation of educational and/or developmental programs for clients;
- (p) plan, co-ordinate and administer the operation of a multi-functional service including financial management and reporting;
- (q) where the prime responsibility lies in professional services, employees at this level would undertake at least some of the following:
 - (i) under general direction undertake a variety of tasks of a specialised and/or detailed nature;
 - (ii) exercise professional judgment within prescribed areas;
 - (iii) carry out planning, studies or research for particular projects including aspects of design, formulation of policy, implementation of procedures and presentation;
 - (iv) provide reports on progress of program activities including recommendations;
 - (v) exercise a high level of interpersonal skills in dealing with the public and other organisations;
 - (vi) plan, develop and operate a community service organisation of a moderately complex nature.

B.5.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

- (a) **Skills, knowledge, experience, qualifications and/or training**
 - (i) knowledge of organisational programs, policies and activities;
 - (ii) sound discipline knowledge gained through experience;
 - (iii) knowledge of the role of the organisation, its structure and services.
- (b) **Prerequisites**
 - (i) relevant degree with relevant experience;
 - (ii) associate diploma with substantial experience;
 - (iii) qualifications in more than one discipline;
 - (iv) less formal qualifications with specialised skills sufficient to perform at this level; or

- (v) attained through previous appointments, service and/or study an equivalent level of experience and expertise to undertake the range of activities required.
- (c) **Organisational relationships**
 - (i) work under general direction;
 - (ii) supervise other employees and/or volunteers.
- (d) **Extent of authority**
 - (i) exercise a degree of autonomy;
 - (ii) control projects and/or programs;
 - (iii) set outcomes for lower classified staff;
 - (iv) establish priorities and monitor work flow in areas of responsibility;
 - (v) solutions to problems can generally be found in documented techniques, precedents and guidelines or instructions. Assistance is available when required.

B.6 Social and community services employee level 6

B.6.1 Characteristics of the level

- (a) A person employed as a Social and community services employee level 6 will operate under limited direction from senior employees or management and undertake a range of functions for which operational policies, practices and guidelines may need to be developed.
- (b) General features at this level allow employees the scope to influence the operational activities of the organisation and would require employees to be involved with establishing operational procedures which impact upon the organisation and/or the sections of the community served by it. Employees at this level will be expected to contribute to management of the organisation, assist or prepare budgets, establish procedures and work practices. Employees will be involved in the formation of programs and work practices and will be required to provide assistance and/or expert advice to other employees. Employees may be required to negotiate matters on behalf of the organisation.
- (c) Positions at this level will require responsibility for decision-making in the particular work area and the provision of expert advice. Employees will be

required to provide consultation and assistance relevant to the workplace. Employees will be required to set outcomes for the work areas for which they are responsible so as to achieve the objectives of the organisation. They may be required to undertake the control and co-ordination of a program, project and/or significant work area. Employees require a good understanding of the long term goals of the organisation.

- (d) Employees may exercise managerial responsibility, work independently as specialists or may be a senior member of a single discipline project team or provide specialist support to a range of programs or activities. Positions at this level may be identified by: impact of activities undertaken or achievement of stated outcomes or objectives for the workplace; the level of responsibility for decision-making; the exercise of judgment; delegated authority; and the provision of expert advice.
- (e) Managing time is essential so outcomes can be achieved. A high level of interpersonal skills is required to resolve organisational issues, negotiate contracts, develop and motivate staff. Employees will be required to understand and implement effective staff management and personnel practices.

B.6.2 Responsibilities

To contribute to the operational objectives of the work area, a position at this level may include some of the following:

- (a) undertake significant projects and/or functions involving the use of analytical skills;
- (b) undertake managerial or specialised functions under a wide range of conditions to achieve results in line with organisation goals;
- (c) exercise managerial control, involving the planning, direction, control and evaluation of operations which include providing analysis and interpretation for either a major single or multi-specialist operation;
- (d) undertake a range of duties within the work area, including develop work practices and procedures; problem definition, planning and the exercise of judgment; provide advice on policy matters and contribute to their development;
- (e) negotiate on matters of significance within the organisation with other bodies and/or members of the public;

- (f) provide advice on matters of complexity within the work area and/or specialised area;
- (g) control and co-ordinate a work area or a larger organisation within budgetary constraints;
- (h) exercise autonomy in establishing the operation of the work area;
- (i) provide a consultancy service for a range of activities and/or to a wide range of clients;
- (j) where the prime responsibility lies in a specialised field an employee at this level would undertake at least some of the following:
 - (i) provide support to a range of activities or programs;
 - (ii) control and co-ordinate projects;
 - (iii) contribute to the development of new procedures and methodology;
 - (iv) provide expert advice and assistance relevant to the work area;
 - (v) supervise/manage the operation of a work area and monitor work outcomes;
 - (vi) supervise on occasions other specialised staff;
 - (vii) supervise/manage the operation of a discrete element which is part of a larger organisation;
 - (viii) provide consultancy services for a range of activities.

B.6.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

- (a) **Skills, knowledge, experience, qualification and/or training**
 - (i) comprehensive knowledge of organisation policies and procedures;
 - (ii) specialist skills and/or supervision/management abilities exercised within a multi disciplinary or major single function operation;
 - (iii) specialist knowledge gained through experience, training or education;
 - (iv) appreciation of the long term goals of the organisation;
 - (v) detailed knowledge of program activities and work practices relevant to the work area;

- (vi) knowledge of organisation structures and functions;
- (vii) comprehensive knowledge of requirements relevant to the discipline.

(b) Prerequisites

- (i) degree with substantial experience;
- (ii) post graduate qualification;
- (iii) associate diploma with substantial experience;
- (iv) attained through previous appointments, service and/or study with a combination of experience, expertise and competence sufficient to perform the duties required at this level.

(c) Organisational relationships

- (i) works under limited direction from senior employees of the Committee of Management or Board;
- (ii) supervision of staff.

(d) Extent of authority

- (i) exercise a degree of autonomy;
- (ii) may manage a work area or medium to large organisation or multi-worksite organisation;
- (iii) has significant delegated authority;
- (iv) selection of methods and techniques based on sound judgment;
- (v) manage significant projects and/or functions;
- (vi) solutions to problems can generally be found in documented techniques, precedents, or instructions. Advice available on complex or unusual matters.

B.7 Social and community services employee level 7

B.7.1 Characteristics of the level

- (a) A person employed as a Community services employee level 7 will operate under limited direction and exercise managerial responsibility for various functions within a section and/or organisation or operate as a specialist, a member of a specialised professional team or independently.

- (b) General features at this level require employees' involvement in establishing operational procedures which impact on activities undertaken and outcomes achieved by the organisation and/or activities undertaken by sections of the community served by the organisation.
- (c) Employees are involved in the formation/establishment of programs, the procedures and work practices within the organisation and will be required to provide assistance to other employees and/or sections.
- (d) Positions at this level will demand responsibility for decision-making and the provision of expert advice to other areas of the organisation. Employees would be expected to undertake the control and co-ordination of the organisation and major work initiatives. Employees require a good understanding of the long term goals of the organisation.
- (e) In addition, positions at this level may be identified by the level of responsibility for decision-making, the exercise of judgment and delegated authority and the provision of expert advice.
- (f) The management of staff is normally a feature at this level. Employees are required to set outcomes in relation to the organisation and may be required to negotiate matters on behalf of the organisation.

B.7.2 Responsibilities

To contribute to the operational objectives of the work area, a position at this level may include some of the following:

- (a) undertake managerial or specialised functions under a wide range of conditions to achieve results in line with divisional/corporate goals;
- (b) exercise managerial control, involving the planning, direction, control and evaluation of operations which include providing analysis and interpretation for either a major single discipline or multi-discipline operation;
- (c) develop work practices and procedures for various projects;
- (d) establish work area outcomes;
- (e) prepare budget submissions for senior officers and/or the organisation;
- (f) develop and implement significant operational procedures;
- (g) review operations to determine their effectiveness;

- (h) develop appropriate methodology and apply proven techniques in providing specialised services
- (i) where prime responsibility lies in a professional field an officer at this level:
 - (i) controls and co-ordinates projects/programs within an organisation in accordance with corporate goals;
 - (ii) provides a consultancy service to a wide range of clients;
 - (iii) functions may involve complex professional problem solving;
 - (iv) provides advice on policy method and contributes to its development.

B.7.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

- (a) **Skills, knowledge, experience, qualification and/or training**
 - (i) comprehensive knowledge of policies and procedures;
 - (ii) application of a high level of discipline knowledge;
 - (iii) qualifications are generally beyond those required through tertiary education alone, typically acquired through completion of higher education qualifications to degree level and extensive relevant experience;
 - (iv) lesser formal qualifications with acquisition of considerable skills and extensive relevant experience to an equivalent standard; or
 - (v) a combination of experience, expertise and competence sufficient to perform the duties required at this level.
- (b) **Organisational relationships**
 - (i) works under limited direction;
 - (ii) normally supervises other employees and establishes and monitors work outcomes.
- (c) **Extent of authority**
 - (i) may manage section or organisation;
 - (ii) has significant delegated authority;
 - (iii) selection of methods and techniques based on sound judgment (guidance not always readily available within the organisation).

Decisions and actions taken at this level may have significant effect on program/project/work areas being managed.

B.8 Social and community services employee level 8

B.8.1 Characteristics of this level

- (a)** A person employed as a Social and community services employee level 8 is subject to broad direction from senior officers and will exercise managerial responsibility for the organisation's relevant activity. In addition, employees may operate as a senior specialist providing multi-functional advice to either various departments or directly to the organisation.
- (b)** A person employed as a Social and community services employee level 8 will be subject to broad direction from management/the employer and will exercise managerial responsibility for an organisation. In addition, employees may operate as a senior specialist providing multi-functional advice to other professional employees, the employer, Committee or Board of Management.
- (c)** General features of this level require the employee's involvement in the initiation and formulation of extensive projects or programs which impact on the organisation's goals and objectives. Employees are involved in the identification of current and future options and the development of strategies to achieve desired outcomes.
- (d)** Additional features include providing financial, specialised, technical, professional and/or administrative advice on policy matters within the organisation and/or about external organisations such as government policy.
- (e)** In addition, employees will be required to develop and implement techniques, work practices and procedures in all facets of the work area.
- (f)** Employees at this level require a high level of proficiency in the application of theoretical approaches in the search of optimal solutions to new problems and opportunities which may be outside of the original field of specialisation.
- (g)** Positions at this level will demand responsibility for decision-making within the constraints of organisational policy and require the employees to provide advice and support to all facets of the organisation. Employees will have significant impact upon policies and programs and will be required to provide initiative, and have the ability to formulate, implement, monitor and evaluate projects and programs.

- (h) Positions at this level may be identified by the significant independence of action within the constraints of organisational policy.

B.8.2 Responsibilities

A position at this level may include some of or similar responsibilities to:

- (a) undertake work of significant scope and complexity. A major portion of the work requires initiative;
- (b) undertake duties of innovative, novel and/or critical nature with little or no professional direction;
- (c) undertake functions across a range of administrative, specialist or operational areas which include specific programs or activities, management of services delivery and the provision of high level advice;
- (d) provide authoritative specialist advice on policy matters and contribute to the development and review of policies, both internal and external;
- (e) manage extensive programs or projects in accordance with organisational goals. This may require the development, implementation and evaluation of those goals;
- (f) administer complex policy and program matters;
- (g) may offer consultancy service;
- (h) evaluate and develop/revise methodology techniques with the organisation. The application of high level analytical skills in the attainment and satisfying of organisational objectives;
- (i) where the prime responsibility is in a specialised field, employees at this level would undertake at least some of the following:
 - (i) contribute to the development of operational policy;
 - (ii) assess and review the standards of work of other specialised personnel/external consultants;
 - (iii) initiate and formulate organisational programs;
 - (iv) implement organisational objectives within corporate goals;
 - (v) develop and recommend ongoing plans and programs.

B.8.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

(a) Skills, knowledge, experience, qualification and/or training

- (i) detailed knowledge of policy, programs, guidelines, procedures and practices of the organisation and external bodies;
- (ii) detailed knowledge of statutory requirements.

(b) Prerequisites

- (i) qualifications are generally beyond those normally acquired through a degree course and experience in the field of specialist expertise;
- (ii) substantial post graduate experience;
- (iii) lesser formal qualifications and the acquisition of considerable skills and extensive and diverse experience relative to an equivalent standard; or
- (iv) attained through previous appointments, service and/or study with a combination of experience, expertise and competence sufficient to perform the duties of the position.

Schedule C—Classification Definitions—Crisis Accommodation Employees

[Varied by [PR526106](#)]

C.1 Crisis accommodation employee level 1

C.1.1 Characteristics of this level

- (a) A person employed as a Crisis accommodation employee level 1 will work under general direction in the application of procedures, methods and guidelines that are well established. They would have obtained organisation or industry specific knowledge sufficient for them to give advice and/or information.
- (a) General features of this level involve solving problems of limited difficulty using knowledge, judgment and work organisational skills acquired through qualifications and/or previous work experience. Assistance is available from senior employees.
- (b) Positions at this level allow employees the scope for exercising initiative in the application of established work procedures and may require the employee to establish goals/objectives and outcomes for their own particular work program or project.
- (c) Employees will be responsible for managing and planning their own work.
- (d) Those with supervisory responsibilities should have a basic knowledge of the principles of human resource management and be able to assist subordinate staff or volunteers with on-the-job training. They may be required to supervise more than one component of the work program of the organisation.

[C.1.1(e) varied by [PR526106](#) ppc 01Feb12]

- (e) Graduates with a four year degree that undertake work related to the responsibilities under this level will commence at no lower than pay point 4.

C.1.2 Responsibilities

A position at this level may include some of the following:

- (a) undertake responsibility for various activities in a specialised area;
- (b) exercise responsibility for a function within the organisation;
- (c) allow the scope for exercising initiative in the application of established work procedures;

- (d) assist in a range of functions and/or contribute to interpretation of matters for which there are no clearly established practices and procedures although such activity would not be the sole responsibility of such an employee within the workplace;
- (e) assist with or provide a range of records management services, however the responsibility for the records management service would not rest with the employee;
- (f) proficient in the operation of the computer to enable modification and/or correction of computer software systems or packages and/or identification of problems;
- (g) apply computing programming knowledge and skills in systems development, maintenance and implementation under direction of a senior employee;
- (h) supervise a limited number of volunteers;
- (i) allow the scope for exercising initiative in the application of established work procedures;
- (j) implement elementary service programs;
- (k) provide assistance to senior employees;
- (l) where prime responsibility lies in a specialised field, employees at this level will undertake at least some of the following:
 - (i) undertake some minor phase of a broad or more complex assignment;
 - (ii) perform duties of a specialised nature;
 - (iii) provide a range of information services;
 - (iv) plan and implement elementary community-based projects or programs;
 - (v) perform moderately complex functions including social planning, demographic analysis, survey design and analysis.

C.1.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

- (a) **Skills, knowledge, experience, qualifications and/or training**
 - (i) thorough knowledge of work activities performed within the organisation;
 - (ii) sound knowledge of procedural methods of the organisation;

- (iii) may utilise professional or specialised knowledge;
- (iv) working knowledge of guidelines or statutory requirements relevant to the organisation;
- (v) ability to apply computing concepts.

(b) Prerequisites

[C.1.3(b)(i) varied by [PR526106](#) ppc 01Feb12]

- (i) entry level for graduates with a relevant three year degree that undertake work related to the responsibilities under this level—pay point 3;

[C.1.3(b)(ii) varied by [PR526106](#) ppc 01Feb12]

- (ii) entry level for graduates with a relevant four year degree that undertake work related to the responsibilities under this level—pay point 4;
- (iii) associate diploma with experience;
- (iv) Advanced Certificate in Community Services with experience or its equivalent; or
- (v) attained through previous appointments, service and/or study an equivalent level of expertise and experience to undertake the range of activities required.

(c) Organisational relationships

- (i) works under general direction;
- (ii) operate as a member of a team;
- (iii) supervision of volunteers.

(d) Extent of authority

- (i) receive instructions on the broader aspects of the work;
- (ii) freedom to act within defined established practices; that is, freedom to arrange work in a manner the employee feels most comfortable with provided there is no change to defined established work practices;
- (iii) may set outcomes or objectives for specific projects;
- (iv) problems can usually be solved by reference to procedures, documented methods and instructions. Assistance is available when problems occur.

C.2 Crisis accommodation employee level 2

C.2.1 Characteristics of this level

- (a)** A person employed as a Crisis accommodation employee level 2 will work under general direction in functions that require the application of skills and knowledge appropriate to the work. Generally guidelines and work procedures are established.
- (b)** General features at this level require the application of knowledge and skills, which are gained through qualifications and/or previous experience in a discipline. Employees will be expected to contribute knowledge in establishing procedures in the appropriate work related field. In addition, employees at this level may be required to supervise various functions within a work area or activities of a complex nature.
- (c)** Positions may involve a range of work functions, which could contain a substantial component of supervision. Employees may also be required to provide specialist expertise or advice in their relevant discipline.
- (d)** Work at this level requires a sound knowledge of program, activity, operational policy or service aspects of the work performed within a function or a number of work areas.
- (e)** Employees require skills in managing time, setting priorities, planning and organising their own work and that of lower classified staff and/or volunteers where supervision is a component of the position, to achieve specific objectives.
- (f)** Employees will be expected to set outcomes and further develop work methods where general work procedures are not defined.

C.2.2 Responsibilities

To contribute to the operational objectives of the work area, a position at this level may include some of the following:

- (a)** undertake activities which may require the employee to exercise judgment and/or contribute critical knowledge and skills where procedures are not clearly defined;
- (b)** perform duties of a specialised nature requiring the development of expertise over time or previous knowledge;
- (c)** identification of specific or desired performance outcomes;

- (d) contribute to interpretation and administration of areas of work for which there are no clearly established procedures;
- (e) expected to set outcomes and further develop work methods where general work procedures are not defined and could exercise judgment and contribute critical knowledge and skills where procedures are not clearly defined;
- (f) although still under general direction, there is a greater scope to contribute to the development of work methods and the setting of outcomes. However, these must be within the clear objectives of the organisation and within budgetary constraints;
- (g) provide administrative support of a complex nature to senior employees;
- (h) exercise responsibility for various functions within a work area;
- (i) provide assistance to a more senior employee in planning, co-ordinating, implementing and administering the activities and policies including preparation of budgets;
- (j) provide assistance on grant applications including basic research or collection of data;
- (k) undertake a wide range of activities and policies including preparation of budgets;
- (l) case manage clients under supervision;
- (m) develop, control and administer a records management service for the receipt, custody, control, preservation and retrieval of records and related material;
- (n) undertake computer operations requiring technical expertise and experience and may exercise initiative and judgment in the application of established procedures and practices;
- (o) apply computer programming knowledge and skills in systems development, maintenance and implementation;
- (p) provide a reference and research information service and technical service including the facility to understand and develop technologically based systems;
- (q) where the prime responsibility lies in a specialised field, employees at this level would undertake at least some of the following:
 - (i) liaise with other professionals at a technical/professional level;

- (ii) discuss techniques, procedures and/or results with clients on straight forward matters;
- (iii) lead a team within a specialised project;
- (iv) provide a reference, research and/or technical information service;
- (v) carry out a variety of activities in the organisation requiring initiative and judgment in the selection and application of established principles, techniques and methods;
- (vi) perform a range of planning functions which may require exercising knowledge of statutory and legal requirements;
- (vii) assist senior employees with the planning and co-ordination of a community program of a complex nature.

C.2.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

(a) Skills, knowledge, experience, qualifications and/or training

- (i) knowledge of statutory requirements relevant to work;
- (ii) knowledge of organisation policies and activities;
- (iii) knowledge of the role of the organisation and its services and/or functions;
- (iv) specialists require an understanding of the underlying principles in the discipline;
- (v) sound discipline knowledge gained through previous experience, training or education.

(b) Prerequisites

- (i) relevant four year degree with two years relevant experience;
- (ii) three year degree with three years of relevant experience;
- (iii) associate diploma with relevant experience;
- (iv) lesser formal qualifications with substantial years of relevant experience;
or

- (v) attained through previous appointments, service and/or study an equivalent level of expertise and experience to undertake a range of activities.
- (c) employees undertaking specialised services will be promoted to this level once they have had the appropriate experience and undertake work related to the responsibilities under this level;
- (d) employees working as sole employees will commence no lower than this level.
- (e) **Organisational relationships**
 - (i) works under general direction;
 - (ii) supervises other staff and/or volunteers or works in a specialised field.
- (f) **Extent of authority**
 - (i) required to set outcomes within defined constraints;
 - (ii) provides specialist technical advice;
 - (iii) freedom to act governed by clear objectives and/or budget constraints which may involve the contribution of knowledge in establishing procedures within the clear objectives and/or budget constraints where there are no defined established practices;
 - (iv) solutions to problems generally found in precedents, guidelines or instructions. Assistance usually available.

C.3 Crisis accommodation employee level 3

C.3.1 Characteristics of the level

- (a) A person employed as a Crisis accommodation employee level 3 will work under general direction from senior employees. Employees undertake a range of functions requiring the application of a high level of knowledge and skills to achieve results in line with the organisation's goals.
- (b) Employees adhere to established work practices. However, they may be required to exercise initiative and judgment where practices and direction are not clearly defined.
- (c) General features at this level indicate involvement in establishing organisation programs and procedures. Positions will include a range of work functions and may involve supervision. Work may span more than one discipline. In addition, employees at this level may be required to assist in the preparation of, or

prepare the organisation's budget. Employees at this level will be required to provide expert advice to employees classified at a lower level and volunteers.

- (d) Positions at this level demand the application of knowledge, which is gained through qualifications and/or previous experience. In addition, employees will be required to set priorities and monitor work flows in their area of responsibility.
- (e) Employees are required to set priorities, plan and organise their own work and that of lower classified staff and/or volunteers and establish the most appropriate operational methods for the organisation. In addition, interpersonal skills are required to gain the co-operation of clients and staff.
- (f) Employees responsible for projects and/or functions will be required to establish outcomes to achieve organisation goals. Specialists may be required to provide multi-disciplinary advice.

C.3.2 Responsibilities

To contribute to the operational objectives of the work area, a position at this level may include some of the following:

- (a) responsibility for a range of functions within the organisation requiring a high level of knowledge and skills;
- (b) undertake responsibility for a complex project, including planning, co-ordination, implementation and administration;
- (c) assist with the preparation of or prepare organisation or program budgets;
- (d) set priorities and monitor work flow in the areas of responsibility;
- (e) provide expert advice to employees classified at lower levels and/or volunteers;
- (f) exercise judgment and initiative where procedures are not clearly defined;
- (g) understanding of all areas of computer operation to enable the provision of advice and assistance when non-standard procedures/processes are required;
- (h) monitor and interpret legislation, regulations and other agreements relating to occupational health and safety, workers compensation and rehabilitation;
- (i) undertake analysis/design for the development and maintenance of projects and/or undertake programming in specialist areas. May exercise responsibility for a specialised area of computing operation;

- (j) undertake publicity assignments within the framework of the organisation's publicity and promotions program. Such assignments would be of limited scope and complexity but would involve the co-ordination of facets of the total program including media liaison, design and layout of publications/displays and editing;
- (k) operate as a specialist employee in the relevant discipline where decisions made and taken rest with the employee with no reference to a senior employee;
- (l) undertake duties that require knowledge of procedures, guidelines and/or statutory requirements relevant to the organisation;
- (m) plan, co-ordinate, implement and administer the activities and policies which may include preparation of budget;
- (n) develop, plan and supervise the implementation of educational and/or developmental programs for clients or community;
- (o) case management of clients.

C.3.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

- (a) **Skills, knowledge, experience, qualifications and/or training:**
 - (i) knowledge of organisational programs, policies and activities;
 - (ii) sound discipline knowledge gained through experience;
 - (iii) knowledge of the role of the organisation, its structure and services.
- (b) **Prerequisites**
 - (i) relevant degree with relevant experience;
 - (ii) associate diploma with substantial experience;
 - (iii) qualifications in more than one discipline;
 - (iv) less formal qualifications with specialised skills sufficient to perform at this level; or
 - (v) attained through previous appointments, service and/or study an equivalent level of experience and expertise to undertake the range of activities required.

(c) Organisational relationships

Supervise other employees and/or volunteers.

(d) Extent of authority

- (i)** exercise a degree of autonomy;
- (ii)** control projects and/or programs;
- (iii)** set outcomes for lower classified staff;
- (iv)** establish priorities and monitor work flow in areas of responsibility;
- (v)** solutions to problems can generally be found in documented techniques, precedents and guidelines or instructions. Assistance is available when required.

C.4 Crisis accommodation employee level 4

C.4.1 Characteristics of the level

- (a)** A person employed as a Crisis accommodation employee level 4 will operate under limited direction from senior employees or management and undertake a range of functions for which operational policies, practices and guidelines may need to be developed.
- (b)** General features at this level allow employees the scope to influence the operational activities of the organisation and would require employees to be involved with establishing operational procedures which impact upon the organisation and/or the sections of the community served by it. Employees at this level will be expected to contribute to management of the organisation or a section thereof, assist or prepare budgets, establish procedures and work practices. Employees will be involved in the formation of programs and work practices and will be required to provide assistance and/or expert advice to other employees. Employees may be required to negotiate matters on behalf of the organisation.
- (c)** Positions at this level will require responsibility for decision-making in the particular work area and the provision of expert advice. Employees will be required to provide consultation and assistance relevant to the workplace. Employees will be required to set outcomes for the work areas for which they are responsible so as to achieve the objectives of the organisation. They may be required to undertake the control and co-ordination of a program, project

and/or significant work area. Employees require a good understanding of the long term goals of the organisation.

- (d) Employees may exercise managerial responsibility, work independently as specialists or may be a senior member of a single discipline project team or provide specialist support to a range of programs or activities. Positions at this level may be identified by impact of activities undertaken or achievement of stated outcomes or objectives for the workplace; the level of responsibility for decision-making; the exercise of judgment; delegated authority; and the provision of expert advice.
- (e) Managing time is essential so outcomes can be achieved. A high level of interpersonal skills is required to resolve organisational issues, negotiate contracts, develop and motivate staff. Employees will be required to understand and implement effective staff management and personnel practices.
- (f) Graduates required to perform duties relevant to their qualification and undertake work related to the responsibilities under this level will commence at no lower than pay point 2.

C.4.2 Responsibilities

To contribute to the operational objectives of the work area, a position at this level may include some of the following:

- (a) undertake significant projects and/or functions involving the use of analytical skills;
- (b) undertake managerial or specialised functions under a wide range of conditions to achieve results in line with organisation goals;
- (c) exercise managerial control, involving the planning, direction, control and evaluation of operations which include providing analysis and interpretation for either a major single or multi-specialist operation; provide advice on matters of complexity within the work area and/or specialised area;
- (d) undertake a range of duties within the work area, including develop work practices and procedures; problem definition, planning and the exercise of judgment; provide advice on policy matters and contribute to their development;
- (e) negotiate on matters of significance within the organisation with other bodies and/or members of the public;

- (f) control and co-ordinate a work area or a larger organisation within budgetary constraints;
- (g) exercise autonomy in establishing the operation of the work area;
- (h) plan, co-ordinate and administer the operation of a multi-functional service including financial management and reporting;
- (i) provide a consultancy service for a range of activities and/or to a wide range of clients;
- (j) where the prime responsibility lies in a specialised field an employee at this level would undertake at least some of the following:
 - (i) provide support to a range of activities or programs;
 - (ii) control and co-ordinate projects;
 - (iii) contribute to the development of new procedures and methodology;
 - (iv) provide expert advice and assistance relevant to the work area;
 - (v) supervise/manage the operation of a work area and monitor work outcomes;
 - (vi) supervise on occasions other specialised staff;
 - (vii) supervise/manage the operation of a discrete element which is part of a larger organisation;
 - (viii) provide consultancy services for a range of activities.

C.4.3 Requirements of the position

Some or all of the following are needed to perform work at this level:

- (a) **Skills, knowledge, experience, qualifications and/or training**
 - (i) comprehensive knowledge of organisation policies and procedures;
 - (ii) specialist skills and/or supervision/management abilities exercised within a multi-disciplinary or major single function operation;
 - (iii) specialist knowledge gained through experience, training or education;
 - (iv) appreciation of the long term goals of the organisation;
 - (v) detailed knowledge of program activities and work practices relevant to the work area;

- (vi) knowledge of organisation structures and functions;
- (vii) comprehensive knowledge of requirements relevant to the discipline.

(b) Prerequisites

- (i) degree with substantial experience;
- (ii) post graduate qualification;
- (iii) associate diploma with substantial experience; or
- (iv) attained through previous appointments, service and/or study with a combination of experience, expertise and competence sufficient to perform the duties required at this level.

(c) Organisational relationships

- (i) works under limited direction from senior employees of the Committee of Management or Board;
- (ii) manage a work area or medium to large organisation or multi-worksite organisation;

(d) Extent of authority

- (i) exercise a degree of autonomy;
- (ii) may manage a work area or medium to large organisation or multi-worksite organisation;
- (iii) has significant delegated authority; selection of methods and techniques based on sound judgment;
- (iv) manage significant projects and/or functions;
- (v) solutions to problems can generally be found in documented techniques, precedents, or instructions; advice available on complex or unusual matters.

Schedule D—Classification Definitions—Family Day Care Employees

D.1 Family day care employee level 1

An employee engaged at this level will undertake work that:

- D.1.1** will initially require completion of standard work routines, have clearly defined objectives/performance outcomes or undertake tasks of an assisting or supportive nature. Such employees will receive instruction/supervision from another employee as to the performance of their duties. Employees will require good communication, numeric and written skills and may require equipment skills (e.g. keyboard, switchboard etc). May include preparation for and involvement/assisting in childcare provider/caregiver training, support, social and/or learning activities. (e.g. equipment maintenance, monitoring and basic cataloguing);
- D.1.2** develops knowledge and skills, through experience about the organisation's procedures.

D.2 Family day care employee level 2

An employee engaged at this level, in addition to level 1 responsibilities:

- D.2.1** will be expected to operate with a degree of autonomy and may receive instruction from another employee as to the performance of their duties;
- D.2.2** may be responsible for particular functions with an agency which may include assisting in the administration and co-ordination of a unit of an agency;
- D.2.3** may require knowledge of child development, health, hygiene, welfare and safety issues relevant to their position (e.g. may select and order library equipment, maintain and distribute education equipment and materials and undertake cataloguing).

D.3 Family day care employee level 3

An employee engaged at this level, in addition to level 2 responsibilities:

- D.3.1** will be engaged in:
 - (a)** service delivery which may include: regular fieldwork, monitoring standards of childcare, support and development of childcare provider/caregivers, the recruitment, selection and training of childcare providers/caregivers, liaison with parents, placement of children, liaison with government departments; and/or

- (b) providing administrative support of a complex nature, which may include preparation of grant applications and/or preparation of budgets and/or the development and administration of records management and/or applications of computer program knowledge or skills,

- D.3.2** where required will have knowledge of child development, an understanding of childcare, community development and welfare issues where appropriate, and a high level of interpersonal communications skills;
- D.3.3** would be expected to operate with a higher degree of autonomy than a level 2 employee and may operate under minimal supervision;
- D.3.4** may have involvement in service planning, policy development and implementation, responsibility for service delivery and ensuring statutory requirements are met;
- D.3.5** may be responsible for the overall administration and/or co-ordination of a unit/program of a service;
- D.3.6** may have involvement in more than one discipline within a service including planning for recruitment, assessment, training and development and support of childcare providers, early childhood education programming and health, hygiene, welfare and safety policy setting;
- D.3.7** may undertake projects requiring the use of analytical skills (e.g. basis research, collection of data) and subsequent preparation of reports and/or recommendations.

D.3.8 Qualification

Qualifications are as required by State or Statutes, or where such a Statute does not exist, experience in this or a related work discipline and ability to use appropriate skills and techniques.

D.4 Family day care employee level 4

An employee engaged under this level will, in addition to level 3 responsibilities:

- D.4.1** be responsible for the administration and/or co-ordination of a service;
- D.4.2** have a broad understanding of childcare, community development and welfare issues, support services liaison and community education and service administration;
- D.4.3** have substantial involvement in service planning, policy development, implementation and administration, responsibility for service delivery and ensuring statutory requirements are met;

D.4.4 have involvement in more than one discipline/program within a service, which may include planning for recruitment, assessment, training and development and support of childcare providers/caregivers, early childhood education programming, health, hygiene, welfare and safety policy setting, financial management and reporting;

D.4.5 undertake significant projects requiring the use of analytical skills and subsequent preparation of reports and/or recommendations;

D.4.6 have substantial human services management skills.

D.4.7 Qualifications

Requires relevant qualifications as per State Regulations.

D.5 Family day care employee level 5

D.5.1 An employee appointed to this level will operate at a higher level of discretion, skill and responsibility than a level 4 employee. In addition to the duties of a level 4 employee this employee will:

- (a) take a leadership role in areas of management;
- (b) operate with a higher level of independence and be responsible for the overall management of a complex scheme;
- (c) operate with a higher level of autonomy in the financial/human resources function of the scheme;
- (d) provide advice to the management committee on major areas of policy and/or on key issues of significance to the organisation;
- (e) exercise influence which would have a critical effect on the performance of the organisation as a whole;
- (f) manage and be responsible for multiple services or exercise skills and responsibility equivalent to managing a multiple service.

D.5.2 Multiple service means, for example, one or more family day care scheme(s) or one family day care scheme and a long day care centre and/or out-of-school hours care and/or vacation care.

[Schedule E deleted by [PR995399](#) ppc 26Mar10]

Schedule E—Classification Definitions—Home Care Employees—Disability Care

[Schedule F renumbered as Schedule E by [PR995399](#) ppc 26Mar10]

[Schedule E varied by [PR500644](#); Schedule E—Classification Definitions—Home Care Employees renamed by [PR779153](#)]

E.1 Home care employee level 1—disability care

[E.1—Home care employee level 1 renamed by [PR779153](#) ppc 01Jan25]

A position in this level has the following characteristics:

E.1.1 A person appointed to this position will have less than 12 months' experience in the industry.

E.1.2 Accountability and extent of authority

[Schedule E.1.2 varied by [PR500644](#) from 23Aug10]

An employee in this level performs broad tasks involving the utilisation of a range of basic skills in the provision of domestic assistance and support and is responsible for the quality of their work.

E.1.3 Judgment and decision-making

Work activities are routine and clearly defined. The tasks to be performed may involve the use of a limited range of techniques and methods within a specified range of work. An employee may resolve minor problems that relate to immediate work tasks.

E.1.4 Specialist knowledge and skills

Indicative but not exclusive tasks include: the undertaking of semi-skilled work, including cleaning, vacuuming, dusting, washing and ironing, shopping, sweeping paths, minor maintenance jobs, preparation and cooking of meals, defrosting refrigerators, emptying and cleaning of commodes, banking and account payment, organising appointments, assistance with care of pets, and care of indoor and outdoor pot plants.

E.1.5 Interpersonal skills

Positions in this level may require basic oral communication skills and where appropriate written skills, with clients, members of the public and other employees.

E.1.6 Qualifications and experience

An employee in this level will have commenced on-the-job training which may include an induction course.

E.2 Home care employee level 2—disability care

[E.2—Home care employee level 2 renamed by [PR779153](#) ppc 01Jan25]

A position in this level has the following characteristics:

E.2.1 Accountability and extent of authority

An employee in this level performs broad tasks involving the utilisation of a range of developed skills in the provision of domestic assistance and support. Work performed falls within general guidelines but with scope to exercise discretion in the application of established practices and procedures. May assist others in the supervision of work of the same or lower level and is responsible for assuring the quality of work performed.

E.2.2 Judgment and decision-making

In these positions, the nature of the work is clearly defined with established procedures well understood or clearly documented. Employees in this level are called upon to use some originality in approach with solutions usually attributable to application of previously encountered procedures and practices.

E.2.3 Specialist knowledge and skills

Indicative but not exclusive tasks include: the provision of personal care, supervising daily hygiene, laying out clothes and assisting in dressing, make beds, tidy rooms, preparation and cooking of meals and assistance with meals, dry cleaning, perform gardening duties, undertake basic repairs, clean, fitting and removal of aids and appliances, monitoring medications, fitting and changing of catheters, assistance with communication, accompanying clients on outings, domestics assistance and organising appointments.

E.2.4 Interpersonal skills

Positions in this level require oral communication skills and where appropriate written skills, with clients, members of the public and other employees.

E.2.5 Qualifications and experience

As a minimum an employee in this level will have satisfactorily completed the requirements of level 1 or equivalent. Indicative but not exclusive of the

qualifications required in this level include Home Care Certificate or equivalent; or relevant experience/on-the-job training commensurate with the requirements of work in this level.

E.3 Home care employee level 3—disability care

[E.3—Home care employee level 3 renamed by [PR779153](#) ppc 01Jan25]

A position in this level has the following characteristics:

E.3.1 Accountability and extent of authority

Employees perform work under general supervision. Employees in this level have contact with the public or other employees which involves explanations of specific procedures and practices. Employees in this level are accountable for the quality, quantity and timeliness of their own work in so far as available resources permit, and for the care of assets entrusted to them.

E.3.2 Judgment and decision-making

These positions require personal judgment. The nature of work is usually specialised with procedures well understood and clearly documented. The particular tasks to be performed will involve selection from a range of techniques, systems, equipment, methods or processes.

E.3.3 Specialist knowledge and skills

Indicative but not exclusive tasks include: computer and other office skills; maintain mail register and records; sort, process and record invoices and correspondence; prepare meals and special functions; provide input into meal planning; order foodstuffs and commodities; liaise with dieticians on special needs; schedule work programs on a routine and regular basis; co-ordinate and direct the work of support staff including maintenance (no more than four); oversee the provision of domestic services; provide personal care to clients with particular emphasis on those requiring extra help due to specific physical problems or frailty; schedule maintenance work programs on a routine and regular basis; plan, develop, and co-ordinate diversional therapy programs and carry out general maintenance falling within the scope of trades skills.

E.3.4 Interpersonal skills

Positions in this level require skills in oral and written communication with clients, other employees and members of the public.

E.3.5 Qualifications and experience

Indicative but not exclusive of the qualifications required in this level is an accredited qualification to the position at the level of Certificate 3 and/or knowledge and skills gained through on-the-job training commensurate with the requirements of the work in this level.

E.4 Home care employee level 4—disability care

[E.4—Home care employee level 4 renamed by [PR779153](#) ppc 01Jan25]

A position in this level has the following characteristics:

E.4.1 Accountability and extent of authority

Employees are expected to exercise discretion within standard practices and processes, undertaking and implementing quality control measures. Positions in this level may provide direction, leadership, administration and rostering of direct care employees.

E.4.2 Judgment and decision-making

The objectives of the work are well defined but the particular method, process of equipment to be used must be selected from a range of available alternatives. For employees undertaking rostering duties, the process often requires the quantification of the amount of resources needed to meet those objectives.

E.4.3 Specialist knowledge and skills

- (a)** Employees will be required to plan, direct and train subordinate staff. Employees are also required to have a thorough understanding of the relevant technology, procedures and processes used within their operating unit.
- (b)** Indicative but not exclusive of the skills required include: the manipulation of data e.g. modify fields of information and create spreadsheets; create new forms of files or records using a computer based records system; access and extract information from external sources e.g. local authorities; roster staff and direct work programs; oversee the work and training of lower level employees; provide guidance and counselling; assist in the development of budgets; order consumables and routine stock items used in domestic support areas; develop client care plans and oversee the provision of domestic services.

E.4.4 Interpersonal skills

Positions in this level require the ability to gain co-operation and assistance from members of the public and other employees in the performance of well defined activities. Employees in this level may also be expected to write reports in their field of expertise.

E.4.5 Qualifications and experience

An employee in this level will have satisfactorily completed the requirements of level 3 or equivalent as well as have relevant experience.

E.5 Home care employee level 5—disability care

[E.5—Home care employee level 5 renamed by [PR779153](#) ppc 01Jan25]

A position in this level includes care co-ordinator, foreperson and maintenance supervisor. A position in this level has the following characteristics:

E.5.1 Accountability and extent of authority

- (a) Positions in this level may co-ordinate resources and/or give support to more senior employees or be engaged in duties of a specialist nature.
- (b) In positions where the prime responsibility is for resource co-ordination, the freedom to act is governed by clear objectives and/or budgets with frequent prior consultation with more senior employees and a regular reporting mechanism to ensure adherence to plans.
- (c) Whatever the nature of the position, employees in this level are accountable for the quality, effectiveness, cost and timeliness of the programs, projects or work plans under their control and for the safety and security of the assets being managed.
- (d) Employees with co-ordination responsibilities are also required to ensure that all employees under their direction are trained in safe working practices and in the safe operation of equipment and are made aware of all occupational health and safety policies and procedures.

E.5.2 Judgment and decision-making

In these positions, the objectives of the work are usually well defined but the particular method, technology, process or equipment to be used must be selected from a range of available alternatives. However, problems in this level are often of a complex or technical nature with solutions not related to previously encountered

situations and some creativity and originality is required. Guidance and counsel may be available within the time available to make a choice.

E.5.3 Specialist knowledge and skills

Co-ordinators in this level require a thorough understanding of the relevant technology, procedures and processes used within their operating unit. Co-ordinators are required to have an understanding of the function of the position within its organisational context, including relevant policies, regulations and precedents. Positions in this level may provide direction, leadership and structured training or on-the-job training to supervised employees or groups of employees.

E.5.4 Management skills

- (a) These positions require skills in managing time, setting priorities and planning and organising one's own work and that of supervised employees so as to achieve specific and set objectives in the most efficient way possible within the resources available and within a set timetable.
- (b) The position requires an understanding of and ability to implement basic personnel policies and practices including those related to equal employment opportunity, occupational health and safety and employees' training and development.

E.5.5 Interpersonal skills

Positions in this level require the ability to gain co-operation and assistance from clients, members of the public and other employees in the administration of defined activities and in the supervision of other employees or groups of employees. Employees in this level are expected to write reports in their field of expertise and to prepare external correspondence of a routine nature.

E.5.6 Qualifications and experience

The skills and knowledge needed for entry to this level are beyond those normally acquired through completion of a TAFE certificate or associate diploma alone. They might be acquired through completion of a degree or diploma course with little or no relevant work experience, or through lesser formal qualifications with relevant work skills, or through relevant experience and work skills commensurate with the requirements of work in this level.

Schedule F—Classification Definitions—Home Care Employees—Aged Care

[New Schedule F—Classification Definitions—Home Care Employees—Aged Care inserted by [PR779153](#) ppc 01Jan25]

F.1 Home care employee level 1—aged care—Introductory

An employee whose primary role is to provide home care to aged care clients and who has less than 3 months' aged carer experience.

F.2 Home care employee level 2—aged care—Home Carer

An employee whose primary role is to provide home care to aged care clients and who has 3 months' or more aged carer experience.

F.3 Home care employee level 3—aged care—Qualified

An employee whose primary role is to provide home care to aged care clients and who has obtained a Certificate III in Individual Support (Ageing) or equivalent qualification.

F.4 Home care employee level 4—aged care—Senior

An employee whose primary role is to provide home care to aged care clients and who has obtained a Certificate III in Individual Support (Ageing) or equivalent qualification and has obtained 4 years' experience classified at level 3 after 1 January 2025.

F.5 Home care employee level 5—aged care—Specialist

An employee whose primary role is to provide home care to aged care clients and who has obtained a Certificate IV in Ageing Support or equivalent qualification as a requirement for the performance of their duties by the employer.

F.6 Home care employee level 6—aged care—Team Leader

A home care employee who has obtained a Certificate IV in Ageing Support or equivalent qualification as a requirement for the performance of their duties by the employer and is required to supervise and train other home care employees—aged care.

Schedule G—Classification Translation Arrangements

[New Schedule G—Classification Translation Arrangements inserted by [PR779153](#) ppc 01Jan25]

Schedule G specifies the classification and minimum rates of pay that apply to employees in the Home care employees—aged care stream classified under the previous classification structure in this award and employees covered by the *Nurses Award 2020* on 31 December 2024 who became covered by this award as a result of [PR779152](#).

G.1 Translation arrangements for the *Social, Community, Home Care and Disability Services Industry Award 2010*

- G.1.1** The classification structure previously applicable to Home care employees who provide services to an aged person is translated to the classification structure at Schedule F as follows:

Previous classification	Translated classification
Home care employee level 1—aged care	
With less than 3 months' experience	Home care employee level 1—aged care
With 3 months' experience or more	Home care employee level 2—aged care
Home care employee level 2—aged care	
Pay point 1	Home care employee level 2—aged care
Pay point 2	Home care employee level 2—aged care
Home care employee level 3—aged care	
Pay point 1	Home care employee level 3—aged care
Pay point 2	Home care employee level 3—aged care
Home care employee level 4—aged care	
Without a relevant Certificate IV qualification, Pay point 1	Home care employee level 4—aged care
Without a relevant Certificate IV qualification, Pay point 2*	Home care employee level 4—aged care
With a relevant Certificate IV qualification, Pay point 1	Home care employee level 5—aged care
With a relevant Certificate IV qualification, Pay point 2	Home care employee level 5—aged care
Home care employee level 5—aged care	
Pay point 1	Home care employee level 6—aged care
Pay point 2*	Home care employee level 6—aged care

*NOTE: Refer to clause G.1.2.

G.1.2 Retained minimum rates of pay for certain classifications

- (a) Clause G.1.2 only applies to an employee classified under this award on or before 31 December 2024 at Home care employee level 4—aged care, Pay point 2 or Home care employee level 5—aged care, Pay point 2.
- (b) The minimum rate of pay applicable to an employee subject to this clause is the higher of:
 - (i) the minimum rate of pay that applies to the employee’s translated classification at clause G.1.1; and
 - (ii) the minimum rate of pay previously applicable to the employee under the award as at 31 December 2024, as follows:

Previous classification	Per week
	\$
Home care employee level 4—aged care	
Pay point 2	1321.00
Home care employee level 5—aged care	
Pay point 2	1443.40

G.2 Translation arrangements for the *Nurses Award 2020*

An employee who was covered by the *Nurses Award 2020* on 31 December 2024 and who became covered by this award as a result of [PR779152](#) is classified as follows:

Previous classification	Translated classification
First year if less than 3 months' work experience in the industry	Home care employee level 1—aged care
First year if 3 months' or more work experience in the industry Second year Third year	Home care employee level 2—aged care
Experienced (the holder of a relevant Certificate III qualification)	Home care employee level 3—aged care

Schedule H—Supported Wage System

[Sched G renumbered as Sched F by [PR995399](#) ppc 26Mar10; varied by [PR998748](#), [PR510670](#), [PR525068](#), [PR537893](#), [PR542220](#), [PR551831](#), [PR568050](#), [PR581528](#), [PR592689](#), [PR606630](#), [PR709080](#), [PR719661](#), [PR729672](#), [PR742256](#), [PR762969](#), [PR774051](#); Schedule F renumbered as Schedule H by [PR779153](#); varied by [PR786538](#), [PR799280](#)]

H.1 This schedule defines the conditions which will apply to employees who because of the effects of a disability are eligible for a supported wage under the terms of this award.

[H.2 varied by [PR568050](#) ppc 01Jul15]

H.2 In this schedule:

approved assessor means a person accredited by the management unit established by the Commonwealth under the supported wage system to perform assessments of an individual's productive capacity within the supported wage system

assessment instrument means the tool provided for under the supported wage system that records the assessment of the productive capacity of the person to be employed under the supported wage system

disability support pension means the Commonwealth pension scheme to provide income security for persons with a disability as provided under the *Social Security Act 1991* (Cth), as amended from time to time, or any successor to that scheme

relevant minimum wage means the minimum wage prescribed in this award for the class of work for which an employee is engaged

supported wage system (SWS) means the Commonwealth Government system to promote employment for people who cannot work at full award wages because of a disability, as documented in the Supported Wage System Handbook. The Handbook is available from the following website: www.jobaccess.gov.au

SWS wage assessment agreement means the document in the form required by the Department of Social Services that records the employee's productive capacity and agreed wage rate

H.3 Eligibility criteria

H.3.1 Employees covered by this schedule will be those who are unable to perform the range of duties to the competence level required within the class of work for which the employee is engaged under this award, because of the effects of a disability on their productive capacity and who meet the impairment criteria for receipt of a disability support pension.

- H.3.2** This schedule does not apply to any existing employee who has a claim against the employer which is subject to the provisions of workers compensation legislation or any provision of this award relating to the rehabilitation of employees who are injured in the course of their employment.

H.4 Supported wage rates

- H.4.1** Employees to whom this schedule applies will be paid the applicable percentage of the relevant minimum wage according to the following schedule:

Assessed capacity (clause H.5)	Relevant minimum wage
%	%
10	10
20	20
30	30
40	40
50	50
60	60
70	70
80	80
90	90

[H.4.2 varied by [PR998748](#), [PR510670](#), [PR525068](#), [PR537893](#), [PR551831](#), [PR568050](#), [PR581528](#), [PR592689](#), [PR606630](#), [PR709080](#), [PR719661](#), [PR729672](#), [PR742256](#), [PR762969](#), [PR774051](#), [PR786538](#), [PR799280](#) ppc 01Jul26]

- H.4.2** Provided that the minimum amount payable must be not less than **\$109** per week.
- H.4.3** Where an employee's assessed capacity is 10%, they must receive a high degree of assistance and support.

H.5 Assessment of capacity

- H.5.1** For the purpose of establishing the percentage of the relevant minimum wage, the productive capacity of the employee will be assessed in accordance with the

Supported Wage System by an approved assessor, having consulted the employer and employee and, if the employee so desires, a union which the employee is eligible to join.

- H.5.2** All assessments made under this schedule must be documented in an SWS wage assessment agreement, and retained by the employer as a time and wages record in accordance with the [Act](#).

H.6 Lodgement of SWS wage assessment agreement

[H.6.1 varied by [PR542220](#) ppc 04Dec13]

- H.6.1** All SWS wage assessment agreements under the conditions of this schedule, including the appropriate percentage of the relevant minimum wage to be paid to the employee, must be lodged by the employer with the Fair Work Commission.

[H.6.2 varied by [PR542220](#) ppc 04Dec13]

- H.6.2** All SWS wage assessment agreements must be agreed and signed by the employee and employer parties to the assessment. Where a union which has an interest in the award is not a party to the assessment, the assessment will be referred by the Fair Work Commission to the union by certified mail and the agreement will take effect unless an objection is notified to the Fair Work Commission within 10 working days.

H.7 Review of assessment

The assessment of the applicable percentage should be subject to annual or more frequent review on the basis of a reasonable request for such a review. The process of review must be in accordance with the procedures for assessing capacity under the supported wage system.

H.8 Other terms and conditions of employment

Where an assessment has been made, the applicable percentage will apply to the relevant minimum wage only. Employees covered by the provisions of this schedule will be entitled to the same terms and conditions of employment as other workers covered by this award on a pro rata basis.

H.9 Workplace adjustment

An employer wishing to employ a person under the provisions of this schedule must take reasonable steps to make changes in the workplace to enhance the employee's capacity to do the job. Changes may involve re-design of job duties, working time arrangements and work organisation in consultation with other workers in the area.

H.10 Trial period

H.10.1 In order for an adequate assessment of the employee's capacity to be made, an employer may employ a person under the provisions of this schedule for a trial period not exceeding 12 weeks, except that in some cases additional work adjustment time (not exceeding four weeks) may be needed.

H.10.2 During that trial period the assessment of capacity will be undertaken and the percentage of the relevant minimum wage for a continuing employment relationship will be determined.

[H.10.3 varied by [PR998748](#), [PR510670](#), [PR525068](#), [PR537893](#), [PR551831](#), [PR568050](#), [PR581528](#), [PR592689](#), [PR606630](#), [PR709080](#), [PR719661](#), [PR729672](#), [PR742256](#), [PR762969](#), [PR774051](#), [PR786538](#), [PR799280](#) ppc 01Jul26]

H.10.3 The minimum amount payable to the employee during the trial period must be no less than **\$109** per week.

H.10.4 Work trials should include induction or training as appropriate to the job being trialled.

H.10.5 Where the employer and employee wish to establish a continuing employment relationship following the completion of the trial period, a further contract of employment will be entered into based on the outcome of assessment under clause H.5.

Schedule I—National Training Wage

[Sched G inserted by [PR508061](#) ppc 1Jan10; varied by [PR509131](#), [PR522962](#), [PR536765](#), [PR536765](#), [PR545787](#), [PR551688](#), [PR566780](#), [PR579887](#); deleted by [PR593874](#) ppc 01Jul17; Schedule G renumbered as Schedule I by [PR779153](#)]

[Schedule H—Part-day Public Holidays inserted by [PR532630](#) ppc 23Nov12; renamed and varied by [PR544519](#) ppc 21Nov13; renamed and varied by [PR557581](#), [PR573679](#), [PR580863](#), [PR598110](#), [PR701683](#); varied by [PR715164](#); deleted by [PR747423](#) ppc 14Nov22]

Schedule J—Agreement to Take Annual Leave in Advance

[Schedule I—Agreement to Take Annual in Advance inserted by [PR583077](#) ppc 29Jul16; renumbered as Schedule H by [PR747423](#) ppc 14Nov22; Schedule H renumbered as Schedule J by [PR779153](#)]

Link to PDF copy of [Agreement to Take Annual Leave in Advance](#).

Name of employee: _____

Name of employer: _____

The employer and employee agree that the employee will take a period of paid annual leave before the employee has accrued an entitlement to the leave:

The amount of leave to be taken in advance is: ____ hours/days

The leave in advance will commence on: ____/____/20____

Signature of employee: _____

Date signed: ____/____/20____

Name of employer representative: _____

Signature of employer representative: _____

Date signed: ____/____/20____

[If the employee is under 18 years of age - include:]

I agree that:

if, on termination of the employee's employment, the employee has not accrued an entitlement to all of a period of paid annual leave already taken under this agreement, then the employer may deduct from any money due to the employee on termination an amount equal to the amount that was paid to the employee in respect of any part of the period of annual leave taken in advance to which an entitlement has not been accrued.

Name of parent/guardian: _____

Signature of parent/guardian: _____

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Date signed: ____/____/20____

Schedule K—Agreement to Cash Out Annual Leave

[Schedule J—Agreement to Cash Out Annual Leave inserted by [PR583077](#) ppc 29Jul16; renumbered as Schedule I by [PR747423](#) ppc 14Nov22; Schedule I renumbered as Schedule K by [PR779153](#)]

Link to PDF copy of [Agreement to Cash Out Annual Leave](#).

Name of employee: _____

Name of employer: _____

The employer and employee agree to the employee cashing out a particular amount of the employee's accrued paid annual leave:

The amount of leave to be cashed out is: ____ hours/days

The payment to be made to the employee for the leave is: \$_____ subject to deduction of income tax/after deduction of income tax (strike out where not applicable)

The payment will be made to the employee on: ____/____/20____

Signature of employee: _____

Date signed: ____/____/20____

Name of employer representative: _____

Signature of employer representative: _____

Date signed: ____/____/20____

Include if the employee is under 18 years of age:

Name of parent/guardian: _____

Signature of parent/guardian: _____

Date signed: ____/____/20____

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[Schedule X—Additional Measures During the COVID-19 Pandemic inserted by [PR718141](#) ppc 08Apr20; varied by [PR720633](#); corrected by [PR720662](#); varied by [PR721438](#), [PR724065](#), [PR728136](#), [PR736911](#), [PR743808](#); deleted by [PR748510](#)]